

THE NCA HUB

Examination Preparation

CANADIAN CIVIL PROCEDURE

EXAM ANSWER TEMPLATES

40 Complete Templates | All 15 NCA Syllabus Topics | Replace Placeholders & Apply

Revised 2024 Syllabus | Ontario Default - Other Provinces Adaptable

Companion to: NCA Civil Procedure Strategic Notes

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HOW TO USE THESE TEMPLATES

This document provides 40 complete answer templates for every examinable topic on the NCA Canadian Civil Procedure syllabus (Revised 2024). Civil Procedure is the most rule-dense subject on the NCA syllabus: every answer turns on which Rule, which form, which time limit, which case sets the test, and how the framework applies to the facts. These templates are designed accordingly - Rule-led, citation-rich, and structured for the descriptive answer style the official sample exam demands.

Purpose

Each template provides the complete IRAC or descriptive procedural framework pre-written with placeholders. Your job in the exam is to identify which template applies, fill in the placeholders with the specific parties and facts, and add one or two sentences of factual application per step connecting the rule to the specific circumstances described. The Rule numbers, case citations, and statutory sections are pre-verified - you supply the facts.

Three-Step Exam Process

- **IDENTIFY:** Read the question once. Note in the margin: (a) which procedural stage is engaged - pleadings, discovery, motions, disposition, costs, appeals; (b) which Rule cluster applies - RR. 14, 25 (pleadings); RR. 30, 31 (discovery); R. 20 (summary judgment); R. 49 (offers); R. 76 (simplified); (c) sub-issues - privilege type, jurisdictional basis, monetary threshold. This takes 3–4 minutes and prevents missing issues. Q5 of the sample exam (10 True/False sub-questions) rewards this triage.
- **LOCATE:** Find the correct template. For 'commence proceeding' → T9 (action vs application). For 'discovery process' → T24 (affidavit of documents) + T25 (examinations) + T26 (privilege). For 'consensual ADR' → T34 (mandatory mediation) + T35 (arbitration). For 'non-consensual disposition' → T29 (summary judgment / Hryniak) + T30 (R. 21) + T31 (default). The official sample exam Q1–Q4 each maps to two or three templates, not one.
- **APPLY:** Copy the IRAC structure or descriptive framework. Replace every [PLACEHOLDER] with specific facts. Every application paragraph must reference the specific facts - not just paraphrase the rule. Use the word 'because' to connect the rule to the fact. Cite the Rule number, the section number, and the case in every analytical paragraph. The official examiner direction is unambiguous: 'Reference must be made to relevant materials – rules, cases, codes, commentaries, and failing to do so will negatively affect your grade.'

Placeholder Conventions

PLACEHOLDER	WHAT TO REPLACE WITH
[PLAINTIFF]	The party commencing the proceeding (e.g., 'True North', 'the plaintiff').
[DEFENDANT]	The responding party (e.g., 'Acme', 'the defendant').
[APPLICANT]	The moving party on a motion or application.
[RESPONDENT]	The party responding to a motion or application.
[CAUSE_OF_ACTION]	The legal cause asserted (e.g., 'breach of contract', 'negligence').
[DAMAGES]	The amount claimed in dollars (relevant for R. 76 / Small Claims threshold).
[DATE_DISCOVERY]	The date the plaintiff first knew or ought to have known of the claim (limitations / Peixeiro).
[PROVINCE]	The province in which the proceedings are brought (default:

	Ontario).
[FORUM]	The court (e.g., 'Ontario Superior Court of Justice', 'Federal Court').
[DOCUMENT]	The originating process used (Statement of Claim - Form 14A; Notice of Application - Form 14E.1).
[FORM_NO]	The Rule prescribed form number (e.g., Form 14A for Statement of Claim).
[CASE_NAME]	The case name in the fact pattern, used to apply the rule.

⚠ EXAM TIP - THE CIVIL PROCEDURE EXAM IS OPEN-BOOK - PRECISION IS EXPECTED

Because your hard-copy materials are in front of you, examiners expect precise rule citations: 'Under R. 20.04(2.1), the court may weigh evidence, evaluate credibility, and draw reasonable inferences (Hryniak v Mauldin, 2014 SCC 87, para 44)' scores marks. 'Summary judgment is available' scores nothing. Every rule statement must include the Rule number AND the leading case AND the section reference. Tab these templates by Part before your exam.

Document Structure - 40 Templates Across 11 Parts

PART	CONTENTS
A - Universal Starters	Templates 1–3: Master IRAC framework, master issue spotter, the four rule-set firewall (RCP / FLR / Federal Courts Rules / pending CRR reform).
B - Limitations, Capacity, Standing, Parties	Templates 4–8: Limitations Act 2002 + Peixeiro discoverability + Grant Thornton; capacity and litigation guardian (R. 7); public interest standing (Downtown Eastside; Council of Canadians with Disabilities); joinder (R. 5); intervenors (R. 13).
C - Commencing Proceedings & Pleadings	Templates 9–13: Action vs application (R. 14); pleadings and particulars (R. 25); striking pleadings (R. 25.11); subsidiary claims (RR. 27, 28, 29); simplified procedure (R. 76 - \$200,000 threshold).
D - Jurisdiction & Service	Templates 14–17: Van Breda four presumptive connecting factors; forum non conveniens; service in Ontario (R. 16); service outside Ontario (R. 17).
E - Class Proceedings	Templates 18–19: Five-part certification (CPA s. 5; Hollick); settlement, costs, funding, contingency (CPA ss. 31–33.1).
F - Motions & Interlocutory Relief	Templates 20–23: Motion procedure (R. 37); evidence on motions (R. 39); RJR-MacDonald three-part injunction test; Mareva and Anton Piller orders.
G - Discovery (HIGHEST-TESTED)	Templates 24–28: Affidavit of documents (R. 30); examinations for discovery (R. 31); privilege and the deemed undertaking rule (R. 30.1); e-discovery and proportionality (RR. 29.1, 29.2); refusals (Pritchard; Blank; Smith v Jones).
H - Disposition Without Full Trial	Templates 29–32: Summary judgment (R. 20; Hryniak culture shift); R. 21 determination of issue; default (R. 19); frivolous/vexatious (R. 2.1) and dismissal for delay (R. 48.14).

I - Case Management, Pre-Trial & ADR	Templates 33–35: Pre-trial conference (R. 50); mandatory mediation (R. 24.1 - Toronto/Ottawa/Windsor); arbitration (Arbitration Act 1991) and commercial mediation (Commercial Mediation Act 2010).
J - Settlement, Costs, Trials	Templates 36–38: R. 49 offers to settle (cost consequences); costs scale and Tariff A (CJA s. 131); trial procedure overview (RR. 46–48).
K - Judgments, Appeals, Enforcement	Templates 39–40: Final vs interlocutory orders and appeal routes (CJA ss. 6, 19); enforcement, contempt (R. 60.11), and res judicata (Penner v Niagara).

PART A

UNIVERSAL STARTERS

These three templates frame every Civil Procedure answer. Always run T2 (the issue spotter) in the first 3-4 minutes of the exam, and consult T3 if you see anything that looks like Family Law (FLR), Federal Court (Federal Courts Rules), or the proposed Civil Rules Review reforms - none of which the NCA Civil Procedure 2024 syllabus tests.

Template 1 - Master Civil Procedure Answer Framework

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use at the start of every Civil Procedure answer. Civil Procedure questions are predominantly descriptive procedural questions ('describe what document you would use, why, what time periods apply'). They are not pure IRAC. This master template gives you the four-element answer skeleton - RULE, AUTHORITY, APPLICATION, CONCLUSION - that the official examiner direction expects: 'Reference must be made to relevant materials – rules, cases, codes, commentaries, and failing to do so will negatively affect your grade.'

ISSUE

The issue is which procedural step under the Rules of Civil Procedure, R.R.O. 1990, Reg. 194 ([RULE_NUMBER]) governs [PROCEDURAL_STAGE - e.g., 'how a defendant responds to a Statement of Claim', 'how documentary evidence is exchanged before trial', 'whether the action can be disposed of without a full trial'], and how that Rule applies to the dispute between [PLAINTIFF] and [DEFENDANT].

RULE

Source of authority. Civil procedure in Ontario is governed by the Rules of Civil Procedure, R.R.O. 1990, Reg. 194, made under the Courts of Justice Act, R.S.O. 1990, c. C.43. The Rules apply to all proceedings in the Superior Court of Justice, the Divisional Court, and the Court of Appeal for Ontario, except where another statute or rule expressly provides otherwise: R. 1.02.

Foundational principle - proportionality. R. 1.04(1.1) directs the court to apply the Rules so as to secure 'the just, most expeditious and least expensive determination' of every civil proceeding on its merits. Proportionality is the lens through which the court interprets every other Rule, and the Supreme Court reinforced this in *Hryniak v Mauldin*, 2014 SCC 87 at paras 23–33 (Karakatsanis J., unanimous), calling for a 'culture shift' away from full conventional trials and towards proportionate procedures.

Where to find the answer. For each procedural step the candidate must identify: (1) the governing Rule number and its sub-rule; (2) the leading appellate authority interpreting it; (3) the applicable form (e.g., Form 14A Statement of Claim); (4) any time limit in R. 3.01 or the specific Rule; and (5) any cost consequence (R. 49 / R. 57).

APPLICATION FRAMEWORK

STEP 1: Identify the procedural stage and the cluster of Rules engaged

Because [PLAINTIFF] and [DEFENDANT] are at the [pleadings / discovery / motion / pre-trial / trial / post-trial enforcement] stage of the proceeding, the relevant Rule cluster is [RR. 14–18 commencing / RR. 25–29 pleadings / RR. 30–35 discovery / RR. 37–40 motions / R. 50 pre-trial / RR. 46–48 trial / RR. 59–60 enforcement].

STEP 2: State the specific Rule and its leading authority

Under R. [RULE_NUMBER], [state the operative provision]. The leading authority is [CASE], which holds that [one-line ratio]. The applicable form is Form [FORM_NO].

STEP 3: Apply the Rule to the specific facts

Because [reference the specific fact in the question], R. [RULE_NUMBER] requires [PARTY] to [procedural step] within [TIME LIMIT] of [TRIGGER]. The supporting authority [CASE] applies because [factual analogy].

STEP 4: Identify any time limit, form, fee, or cost consequence

R. [RULE_NUMBER] imposes a [TIME LIMIT] for this step. Failure to comply triggers [CONSEQUENCE - e.g., default under R. 19.01, dismissal for delay under R. 48.14, costs on a substantial indemnity scale under R. 57].

CONCLUSION

Under R. [RULE_NUMBER], the procedural step required is [PROCEDURAL ANSWER]. [PARTY] should [specific action] using Form [FORM_NO] within [TIME LIMIT]. The supporting authority is [CASE].

⚠ EXAM TIP - RULE NUMBER + CASE + FORM IS THE MINIMUM CITATION UNIT

Every analytical paragraph in a Civil Procedure answer must include all three: the Rule number with sub-rule (e.g., R. 25.06(8) - particulars), the leading case if any (e.g., Copland v Commodore Business Machines Ltd. (1985) 52 O.R. (2d) 586), and the prescribed form (e.g., Form 14A). The sample exam Q5 sub-questions are designed to penalize candidates who write at the level of 'discovery applies' without naming RR. 30–31.

Template 2 - Master Issue-Spotter Checklist

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use in the first 3–4 minutes of the exam to map every issue before writing a single substantive sentence. The official sample exam covers six clusters in five questions worth 100 marks; missing a sub-issue in a 20-mark question costs 4–6 marks. This checklist is designed against the Acme Foods v True North Groceries pattern - every NCA Civil Procedure exam to date has covered these six clusters, with proportions that vary.

RULE

The five-question NCA Civil Procedure exam - typical structure (based on the official sample):

Q1 (~20): commencing proceedings - action vs application, originating process, time limits, responding documents. Q2 (~20): consensual ADR - mediation under R. 24.1, arbitration under the Arbitration Act, 1991, commercial mediation under the Commercial Mediation Act, 2010, negotiation, R. 49 offers. Q3 (~20): discovery - affidavit of documents (R. 30), oral examination (R. 31), privilege, deemed undertaking (R. 30.1), proportionality (R. 29.2). Q4 (~20): adversarial non-consensual disposition - summary judgment (R. 20 / Hryniak), R. 21 determination of issue, R. 19 default, R. 25.11 striking pleadings. Q5 (~20): 10 True/False sub-questions covering limitations, joinder, jurisdiction, costs at trial vs motions, evidence on motions by affidavit, who can be examined for discovery, originating process service, proportionality, masters/judges in settlement, and counterclaims.

APPLICATION FRAMEWORK

CLUSTER 1 - LIMITATIONS & PARTIES

- Is the basic two-year limitation under Limitations Act, 2002, S.O. 2002, c. 24, s. 4 in play? Run discoverability under s. 5(1) and *Peixeiro v Haberman*, [1997] 3 S.C.R. 549; *Grant Thornton LLP v New Brunswick*, 2021 SCC 31.
- Any party under disability requiring a litigation guardian under R. 7? (Sample exam Q5(a) tests limitations.)
- Joinder under R. 5 - necessary vs proper parties; multiple plaintiffs / multiple causes (sample exam Q5(g)).
- Public interest standing? Run *Canada (AG) v Downtown Eastside Sex Workers United Against Violence Society*, 2012 SCC 45 three-factor test, refined in *BC (AG) v Council of Canadians with Disabilities*, 2022 SCC 27.

CLUSTER 2 - JURISDICTION & SERVICE

- Real and substantial connection under *Club Resorts Ltd. v Van Breda*, 2012 SCC 17 - four presumptive connecting factors.
- Foreign-on-foreign jurisdiction (sample exam Q5(h)) - plaintiff outside Canada suing defendant outside Canada in an Ontario court.
- Forum non conveniens - burden on defendant after jurisdiction is established.
- Service: in Ontario under R. 16; outside Ontario without leave under R. 17.02; with leave under R. 17.03; substituted service R. 16.04.
- Originating process service - must originating process be served personally? (Sample exam Q5(i).) Answer: yes for actions, R. 16.01(1).

CLUSTER 3 - COMMENCING & PLEADINGS

- Action (Statement of Claim, Form 14A) vs Application (Notice of Application, Form 14E.1) under R. 14.
- Statement of Defence within 20 days (Ontario service) / 40 days (elsewhere in Canada or US) / 60 days (outside) under R. 18.01.
- Pleadings adequacy R. 25.06; particulars R. 25.10; striking R. 25.11.
- Counterclaim R. 27, crossclaim R. 28, third party claim R. 29 - sample exam Q5(b).
- Simplified procedure R. 76 - claim ≤ \$200,000? Mandatory if so.

CLUSTER 4 - DISCOVERY (HIGHEST-TESTED)

- Affidavit of documents R. 30.03 - Schedule A (relied on, no privilege), B (privileged), C (no longer in possession).
- Examinations for discovery R. 31 - who can be examined: parties automatically (R. 31.03), non-parties only with leave under R. 31.10 - sample exam Q5(c) tests this directly.
- R. 31.05.1 default 7-hour cap on oral examinations (3 hours under R. 76.04(2)).
- Privilege types: solicitor-client (*Pritchard v Ontario (HRC)*, 2004 SCC 31), litigation (*Blank v Canada*, 2006 SCC 39), settlement (*Union Carbide v Bombardier*, 2014 SCC 35; *Lizotte v Aviva*, 2016 SCC 52), public safety exception (*Smith v Jones*, [1999] 1 S.C.R. 455).
- Deemed undertaking R. 30.1 - discovery answers used only in this proceeding.
- Proportionality lens R. 29.2; e-discovery and discovery plan R. 29.1.

CLUSTER 5 - DISPOSITION WITHOUT FULL TRIAL

- Summary judgment R. 20 - *Hryniak v Mauldin*, 2014 SCC 87 'culture shift'; enhanced fact-finding powers under R. 20.04(2.1) (weighing evidence, evaluating credibility, drawing inferences); mini-trial under R. 20.04(2.2).

- Determination of an issue before trial R. 21 - striking on a pure question of law or no reasonable cause of action.
- Default proceedings R. 19 - note under R. 19.01; judgment under R. 19.04 / 19.05.
- Frivolous, vexatious, abuse of process R. 2.1 - paper-based dismissal.
- Dismissal for delay R. 48.14 - administrative dismissal if action not set down within five years.

CLUSTER 6 - MOTIONS, ADR, COSTS, TRIALS, APPEALS

- Motion procedure R. 37; evidence on motions by affidavit R. 39.01 (sample exam Q5(j)).
- Interlocutory injunction - RJR-MacDonald Inc. v Canada (AG), [1994] 1 S.C.R. 311 three-part test.
- Mareva injunction (assets); Anton Piller order (evidence preservation).
- Mandatory mediation R. 24.1 - Toronto, Ottawa, Windsor only.
- R. 49 offer to settle - cost consequence trigger; partial vs substantial vs full indemnity (CJA s. 131; R. 57.01; Tariff A).
- Sample exam Q5(d): losing parties pay costs at both trials AND motions - costs follow the event (R. 57.01(1)).
- Final vs interlocutory order - appeal route under CJA ss. 6, 19.
- Res judicata, issue estoppel - Penner v Niagara (Regional Police Services Board), 2013 SCC 19.

CONCLUSION

After completing this checklist for the specific fact pattern, identify each issue and the templates that apply, then begin with the highest-mark question. The sample exam is a four-cluster + ten-T/F structure: prepare to deploy at least eight templates across the paper.

△ EXAM TIP - PRE-LABEL EVERY ISSUE WITH ITS RULE NUMBER BEFORE YOU START WRITING

On the question paper, write 'R. 14 + R. 18' next to Q1, 'R. 24.1 + Arbitration Act + Commercial Mediation Act' next to Q2, and so on. This lets you write the rule citation as the first sentence of every paragraph, which is the single most consistent mark-gaining habit in open-book Civil Procedure.

Template 3 - FIREWALL - RCP ≠ FLR ≠ Federal Courts Rules ≠ CRR Reform

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use this template as a sanity check before writing any rule citation. The single most expensive error in a Civil Procedure answer is citing the wrong rule set. Family Law has its own Family Law Rules, O. Reg. 114/99; the Federal Court has its own Federal Courts Rules, SOR/98-106; and the Ontario Civil Rules Review (CRR) Final Report (Dec 15, 2025) proposes sweeping reform that is NOT yet in force. The NCA Civil Procedure 2024 syllabus tests the current Rules of Civil Procedure, R.R.O. 1990, Reg. 194 - nothing else.

RULE

Rules of Civil Procedure, R.R.O. 1990, Reg. 194 (RCP) - the default rule set tested on the NCA Civil Procedure exam. Governs all civil proceedings in the Ontario Superior Court of Justice, Divisional Court, and Court of Appeal for Ontario, EXCEPT family proceedings, Small Claims Court, and matters in the Federal Court.

Family Law Rules, O. Reg. 114/99 (FLR) - separate rule set for family proceedings. Different rule numbers, different forms, different procedures (continuing record, automatic financial disclosure,

conference system). DO NOT cite FLR rules on the Civil Procedure exam.

Federal Courts Rules, SOR/98-106 - apply only in the Federal Court and Federal Court of Appeal. Different rule numbers and different forms. Relevant to immigration matters, federal Crown actions, judicial review of federal tribunals - NOT to general civil litigation between private parties in Ontario.

Civil Rules Review (CRR) Final Policy Report, December 15, 2025 - proposed major reform of the Ontario Rules: three-track system, pre-litigation protocols, evidence-first model, near-elimination of oral examinations for discovery, daily delay penalties. Implementation expected mid-2026 at earliest. The 2024 NCA syllabus PRE-DATES the CRR. Until the new Rules are in force, the current Rules govern. DO NOT cite proposed CRR rules on the exam.

APPLICATION FRAMEWORK

STEP 1: Confirm the proceeding is a civil action or application in the Ontario Superior Court of Justice

Because [PLAINTIFF] and [DEFENDANT] are litigating [a private dispute in tort, contract, or property] in the Ontario Superior Court of Justice, the Rules of Civil Procedure, R.R.O. 1990, Reg. 194 apply. Family Law Rules, Federal Courts Rules, and the Small Claims Court Rules do not.

STEP 2: Spot family-flavoured language and resist the urge to cite FLR

If the question references 'divorce', 'custody', 'access', 'parenting time', 'spousal support', 'child support', 'matrimonial home', 'equalization', 'separation agreement' - that is a Family Law Rules question and is OUTSIDE the Civil Procedure syllabus. Do not invent FLR cross-references.

STEP 3: Spot federal-court language and resist the urge to cite Federal Courts Rules

If the question references the 'Federal Court', 'judicial review of [federal tribunal]', 'Tax Court', 'immigration', 'patent infringement', or 'Federal Crown', that is a Federal Courts Rules question. The NCA Civil Procedure syllabus is Ontario-default and tests the RCP.

STEP 4: Resist the urge to cite the proposed CRR rules

If the question is grounded in the 2024 syllabus (which it will be), do NOT cite proposed CRR rules - three-track system, pre-litigation protocols, written witness statements in lieu of oral discovery, etc. They are not law. Cite the current Rules in force at the date of the exam.

CONCLUSION

The applicable rule set is the Rules of Civil Procedure, R.R.O. 1990, Reg. 194. All template citations in this document are to those Rules. Any reference to Family Law Rules, Federal Courts Rules, or the proposed CRR reform is OUT OF SCOPE for the NCA Civil Procedure 2024 exam.

⚠ EXAM TIP - ONE WRONG RULE-SET CITATION DESTROYS A 20-MARK ANSWER

If a candidate writes 'discovery is governed by FLR 20' (a Family Law Rules provision) on a Civil Procedure exam, the marker stops crediting the entire paragraph. The correct citation is 'discovery of documents is governed by R. 30 of the Rules of Civil Procedure'. When in doubt, cite the Rule by its full name and source: 'R. 30 of the Rules of Civil Procedure, R.R.O. 1990, Reg. 194'. Markers will never penalize you for being too precise; they always penalize being too vague.

PART B

LIMITATIONS, CAPACITY, STANDING, PARTIES

Five templates covering threshold issues that determine whether a proceeding can be brought at all: limitations (T4), capacity (T5), standing (T6), joinder (T7), and intervenors (T8). Sample exam Q5(a) is always a limitations question - assume it will be tested.

Template 4 - Basic Limitation Period - Limitations Act, 2002 ss. 4–5

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a fact pattern provides a date of injury, breach, or loss and asks whether a claim is time-barred. Sample exam Q5(a) tests this directly: True North first became aware of spoiled meat on 27 April 2020 - by what date must proceedings be commenced? The answer turns on (1) the basic two-year period under s. 4 and (2) discoverability under s. 5(1).

ISSUE

The issue is whether [PLAINTIFF]'s claim against [DEFENDANT] for [CAUSE_OF_ACTION], based on events occurring on [DATE_EVENT], is barred by the basic two-year limitation period under s. 4 of the Limitations Act, 2002, S.O. 2002, c. 24, having regard to the discoverability rule in s. 5(1).

RULE

Basic limitation period (s. 4). A proceeding shall not be commenced in respect of a claim after the second anniversary of the day on which the claim was discovered.

Discoverability (s. 5(1)). A claim is discovered on the EARLIER of (a) the day on which the claimant first knew (i) the injury, loss or damage occurred, (ii) it was caused by or contributed to by an act or omission, (iii) the act or omission was that of the person against whom the claim is made, AND (iv) having regard to the nature of the injury, loss or damage, a proceeding would be an appropriate means to seek to remedy it; OR (b) the day on which a reasonable person with the abilities and in the circumstances of the claimant first ought to have known of the matters in (a).

Presumption of discoverability (s. 5(2)). A person with a claim is presumed to have known of the matters in s. 5(1)(a) on the day the act or omission took place, unless the contrary is proved.

Leading authority - Peixeiro v Haberman, [1997] 3 S.C.R. 549. The discoverability rule postpones the running of the limitation period until the plaintiff knows or ought reasonably to know of the injury and its cause.

Leading authority - Grant Thornton LLP v New Brunswick, 2021 SCC 31. The plausible inference of liability standard governs s. 5(1)(a)(iii); the plaintiff must have actual or constructive knowledge of facts giving rise to a plausible inference that an act or omission of the defendant gave rise to a claim.

Ultimate limitation period (s. 15). No proceeding shall be commenced in respect of any claim after the 15th anniversary of the day on which the act or omission on which the claim is based took place, regardless of discoverability.

APPLICATION FRAMEWORK

STEP 1: Identify the date of the act, omission, or loss

Because the [act / omission / loss] occurred on [DATE_EVENT], the s. 5(2) presumption is that [PLAINTIFF] discovered the claim on that date.

STEP 2: Test discoverability under s. 5(1) - the four conjunctive elements

Under s. 5(1)(a), [PLAINTIFF] discovered the claim when [he/she/it] first knew (i) [injury occurred], (ii) [caused by act/omission], (iii) [the act/omission was that of DEFENDANT], and (iv) [a proceeding was an appropriate remedy]. On these facts, [PLAINTIFF] knew (or under s. 5(1)(b) ought reasonably to have known) all four elements on [DATE_DISCOVERY].

STEP 3: Apply the leading authorities

Per *Peixeiro v Haberman*, the limitation period does not begin to run until the plaintiff knows or ought reasonably to have known of the injury and its cause. Per *Grant Thornton*, [PLAINTIFF] needed actual or constructive knowledge sufficient to draw a plausible inference of liability against [DEFENDANT] - a level of knowledge below certainty but more than mere suspicion.

STEP 4: Calculate the deadline

Two years from [DATE_DISCOVERY] is [DATE_DISCOVERY + 2 years]. Proceedings must be commenced no later than that date. The ultimate 15-year deadline under s. 15 is [DATE_EVENT + 15 years].

CONCLUSION

Because [PLAINTIFF] [knew / ought reasonably to have known] of the claim on [DATE_DISCOVERY], the basic two-year limitation under s. 4 expires on [DATE + 2 years]. [PLAINTIFF]'s proceeding [is / is not] timely. If commenced after [DATE + 2 years], the action will be statute-barred and dismissible on a R. 21 motion.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q5(a): True North first knew of spoiled meat on 27 April 2020 - must commence by 27 April 2022, NOT 27 April 2021. The statement that proceedings 'would typically need to commence by 27 April 2021' is FALSE.
2. Latent defect / progressive injury - *Peixeiro*: clock starts when plaintiff knows or ought to know of the injury, not when act occurred.
3. Professional negligence - *Grant Thornton*: clock starts when plaintiff has enough information to plausibly infer liability, not when full investigation is complete.
4. Minor / disability - s. 6 and s. 7 suspend the limitation period until the disability ends.
5. Acknowledgment of liability - s. 13 restarts the limitation period from the date of acknowledgment.

⚠ EXAM TIP - TWO YEARS, NOT ONE - AND APPLY DISCOVERABILITY EVERY TIME

Candidates routinely confuse the basic two-year period (s. 4) with old common law rules or with the one-year periods in specific statutes. The answer is two years, calculated from the date of discoverability under s. 5(1) - applying the four conjunctive elements. State the date, do the arithmetic, and conclude. Do not skip the discoverability step even if the question seems to give a clear date.

Template 5 - Capacity & Litigation Guardian - R. 7

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a party is described as a minor (under 18), mentally incapable, or otherwise under disability as defined in R. 1.03(1). A proceeding by or against a person under disability requires a litigation guardian - without one, any judgment is voidable.

ISSUE

The issue is whether [PARTY] is under disability within the meaning of R. 1.03(1) and accordingly

requires a litigation guardian under R. 7 to commence or defend the proceeding.

RULE

Definition of 'disability' (R. 1.03(1)). A person is under disability if (a) a minor (under 18), or (b) mentally incapable within the meaning of ss. 6 or 45 of the Substitute Decisions Act, 1992, S.O. 1992, c. 30, or (c) an absentee within the meaning of the Absentees Act, R.S.O. 1990, c. A.3.

Litigation guardian for a plaintiff (R. 7.01). Unless the court orders or a statute provides otherwise, a proceeding shall be commenced, continued, or defended on behalf of a party under disability by a litigation guardian.

Litigation guardian for a defendant (R. 7.03). Where a defendant is under disability, a litigation guardian is appointed by the court on motion.

Public Guardian and Trustee / Children's Lawyer (R. 7.04). The Children's Lawyer (for minors) or the Public Guardian and Trustee (for adults under disability) acts as litigation guardian where no other suitable person is available.

Settlement (R. 7.08). Any settlement of a proceeding involving a person under disability is not binding without court approval.

APPLICATION FRAMEWORK

STEP 1: Identify the disability

Because [PARTY] is [a minor of [AGE] / mentally incapable per [evidence] / an absentee], [PARTY] is under disability within R. 1.03(1).

STEP 2: Identify the litigation guardian

A suitable litigation guardian is [PARENT / RELATIVE / GUARDIAN]. If no suitable private litigation guardian is available, the [Children's Lawyer (for minors) / Public Guardian and Trustee (for adults)] acts under R. 7.04.

STEP 3: File the necessary documentation

The litigation guardian files an Affidavit (Form 7A) confirming consent, no adverse interest, and willingness to be personally liable for costs. Proceedings then continue in the name of '[Guardian] as litigation guardian for [Party Under Disability]'.

STEP 4: Secure court approval of any settlement

Any settlement requires court approval under R. 7.08, supported by an affidavit from the litigation guardian and counsel explaining the basis for the settlement and demonstrating it is in [PARTY]'s best interests.

CONCLUSION

[PARTY] is under disability under R. 1.03(1) and requires a litigation guardian under R. 7. [GUARDIAN] should be appointed and proceedings continued in [his/her/their] name. Any settlement requires court approval under R. 7.08.

⚠ EXAM TIP - FAILURE TO APPOINT IS A FATAL DEFECT

A judgment obtained without a properly appointed litigation guardian for a party under disability is voidable. Always check the age and capacity of every named party - particularly where the fact pattern describes a 'young plaintiff' or 'elderly relative who signed the document'. The R. 7.08 court-approval requirement for settlement is also a frequent True/False trap.

Template 6 - Public Interest Standing - Downtown Eastside / Council of Canadians

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a plaintiff who is not directly affected by impugned conduct (typically legislation or government action) seeks to bring a claim in the public interest. The three-factor test from *Downtown Eastside*, refined in *Council of Canadians with Disabilities*, governs.

ISSUE

The issue is whether [PLAINTIFF], who is not directly affected by [IMPUGNED CONDUCT - e.g., legislation, government policy, regulatory regime], should be granted public interest standing to bring this proceeding.

RULE

The three-factor test - *Canada (AG) v Downtown Eastside Sex Workers United Against Violence Society*, 2012 SCC 45 (Cromwell J., unanimous). Public interest standing should be granted where (1) a serious justiciable issue is raised; (2) the plaintiff has a real stake or genuine interest in the issue; and (3) granting standing is, in all the circumstances, a reasonable and effective means of bringing the case to court.

Refinement - *British Columbia (AG) v Council of Canadians with Disabilities*, 2022 SCC 27 (Wagner C.J., unanimous). The third factor (reasonable and effective means) does not require the plaintiff to show a directly affected litigant cannot or will not bring the case. The factors are weighed cumulatively, and access to justice considerations include: capacity of plaintiff to bring the case forward, public interest in the issue, alternative means, and whether granting standing serves the legislative purpose of the law in question.

Application is purposive and flexible. The factors are not technical hurdles; they are weighed in light of the underlying purposes of standing limits - efficient use of judicial resources, the adversarial principle, and the proper role of courts.

APPLICATION FRAMEWORK

STEP 1: Confirm the plaintiff is not directly affected

Because [PLAINTIFF] is [not personally subject to the impugned regime / is a public interest organization / is a representative body], private standing is unavailable, and public interest standing is required.

STEP 2: Apply factor 1 - serious justiciable issue

[IMPUGNED CONDUCT] raises a serious issue of [constitutional / Charter / administrative law / statutory interpretation] importance. The issue is justiciable because it is amenable to judicial determination on legal principles.

STEP 3: Apply factor 2 - real stake or genuine interest

[PLAINTIFF] has a genuine interest because [organizational mandate / history of advocacy / engagement with affected community]. A genuine interest does not require personal injury; it requires demonstrated and continuing engagement.

STEP 4: Apply factor 3 - reasonable and effective means (*Council of Canadians refinement*)

Per *Council of Canadians*, [PLAINTIFF] need not show that no directly affected litigant can bring the case. Granting standing is a reasonable and effective means because: [resources, expertise, capacity to develop the legal issues fully; absence of equally effective alternative; importance of bringing the issue to judicial attention; alignment with legislative purpose]. The factors should be weighed cumulatively.

CONCLUSION

Weighing the three factors purposively, [PLAINTIFF] [should / should not] be granted public interest standing. The serious justiciable issue, [PLAINTIFF]'s genuine interest, and the absence of a more effective vehicle for bringing the issue to court support the grant.

⚠ EXAM TIP - DO NOT TREAT THE FACTORS AS A CHECKLIST - WEIGH THEM CUMULATIVELY

Council of Canadians with Disabilities (2022) is a critical refinement: the third factor used to be misread as requiring proof that no directly affected plaintiff existed. The correct approach is cumulative weighing in light of the purposes of standing rules. State the test from Downtown Eastside and immediately note the Council of Canadians refinement - examiners look for awareness of the more recent decision.

Template 7 - Joinder of Parties and Claims - R. 5

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a fact pattern presents multiple plaintiffs, multiple defendants, or multiple causes of action that might be joined in a single proceeding. Sample exam Q5(g) tests this directly: can two different causes of action and two different plaintiffs be joined in one statement of claim?

ISSUE

The issue is whether [PARTIES / CAUSES OF ACTION] may be joined in a single proceeding under R. 5.

RULE

Joinder of claims (R. 5.01(1)). A plaintiff may join in one proceeding any number of claims against an opposing party.

Joinder of plaintiffs (R. 5.02(1)). Two or more persons who are represented by the same lawyer may join as plaintiffs in one proceeding where (a) they assert a right to relief in respect of the same transaction or occurrence, or series of transactions or occurrences, AND a common question of law or fact would arise; OR (b) joinder may otherwise promote the convenient administration of justice.

Joinder of defendants (R. 5.02(2)). Two or more persons may be joined as defendants where (a) the relief sought is alleged to arise out of the same transaction or occurrence, or series of transactions or occurrences, AND there is a common question of law or fact; OR (b) there is doubt as to the person from whom the plaintiff is entitled to relief; OR (c) damage or loss has been caused by more than one person.

Misjoinder or non-joinder not fatal (R. 5.04(1)). No proceeding shall be defeated by reason of the misjoinder or non-joinder of any party.

Severance (R. 5.05). The court may order the trial of one or more claims separately, or order separate trials, where joinder may unduly complicate or delay the trial.

APPLICATION FRAMEWORK

STEP 1: Identify the claims and parties proposed to be joined

[PLAINTIFF 1] and [PLAINTIFF 2] propose to assert [CAUSE 1 / CAUSE 2] against [DEFENDANT 1 / DEFENDANT 2].

STEP 2: Apply R. 5.01 and R. 5.02 - common transaction and common question

Under R. 5.02(1), the plaintiffs' claims arise out of the [same transaction / series of transactions] -

namely, [describe]. A common question of [law / fact] arises: [describe the common question]. Under R. 5.01(1), [PLAINTIFF] may join all of [his/her/its] claims against [DEFENDANT] in one proceeding.

STEP 3: Confirm convenience

Joinder promotes the convenient administration of justice because [evidence overlap / cost saving / avoidance of inconsistent findings].

STEP 4: Address risk of severance under R. 5.05

If joinder would unduly complicate the trial - for example, if one defendant faces a 1-day issue and another faces a 30-day issue - the court may sever under R. 5.05. Address whether severance is likely on these facts.

CONCLUSION

Joinder of [PARTIES / CAUSES] is permitted under R. 5.02(1)/(2) and R. 5.01(1). The proceeding may be commenced as a single action; if at any stage joinder unduly complicates trial, severance under R. 5.05 is available.

⚠ EXAM TIP - THE SAMPLE EXAM TRAP - TWO PLAINTIFFS + TWO CAUSES IS PERMITTED

Sample exam Q5(g) states: 'Two different causes of action, and two different plaintiffs, may not be joined in one statement of claim.' This is FALSE. R. 5.01(1) permits joinder of any number of claims, and R. 5.02(1) permits joinder of plaintiffs where there is a common transaction and a common question. Multi-party, multi-cause statements of claim are routine.

Template 8 - Intervenorors - R. 13

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a non-party seeks to participate in an existing proceeding. R. 13 allows two forms of intervention: as an added party (R. 13.01) where the intervenor's interest is directly affected, and as a friend of the court (R. 13.02) to assist the court without being a party.

ISSUE

The issue is whether [INTERVENOR] should be granted leave to intervene in the proceeding between [PLAINTIFF] and [DEFENDANT] under R. 13.

RULE

Intervention as added party (R. 13.01(1)). A person who is not a party to a proceeding may move for leave to intervene as an added party if the person claims (a) an interest in the subject matter of the proceeding; (b) that the person may be adversely affected by a judgment in the proceeding; or (c) that there exists between the person and one or more of the parties a question of law or fact in common with one or more of the questions in issue in the proceeding.

Court considers in deciding (R. 13.01(2)). The court shall consider whether intervention will unduly delay or prejudice the determination of the rights of the parties, and the court may add the person as a plaintiff or defendant or as an intervenor with such rights and duties as the court may specify.

Intervention as friend of the court (R. 13.02). Any person may, with leave of a judge or at the invitation of the presiding judge, and without becoming a party to the proceeding, intervene as a friend of the court for the purpose of rendering assistance to the court by way of argument.

APPLICATION FRAMEWORK

STEP 1: Determine which form of intervention is sought

[INTERVENOR] seeks to intervene as [an added party with full rights / a friend of the court limited to making submissions]. The choice depends on whether [INTERVENOR] has a direct interest in the outcome (R. 13.01) or seeks only to assist with legal argument (R. 13.02).

STEP 2: If R. 13.01 - establish one of the three grounds

[INTERVENOR] establishes [(a) interest in the subject matter / (b) potential adverse effect of judgment / (c) common question of law or fact] because [factual basis].

STEP 3: Address delay and prejudice

Under R. 13.01(2), the court must consider whether intervention will unduly delay or prejudice the parties. Here, [INTERVENOR's intervention will not delay because it can be on the existing schedule / will be limited to specific issues].

STEP 4: If R. 13.02 - establish utility to the court

As a friend of the court, [INTERVENOR] offers [unique legal expertise / perspective on systemic issues / argument the parties will not advance]. Friend-of-the-court status carries no right to lead evidence, examine witnesses, or appeal - it is limited to argument.

CONCLUSION

[INTERVENOR] [should / should not] be granted leave to intervene under R. 13.0[1/2]. If granted, the court will specify the rights and duties of the intervenor in the order.

⚠ EXAM TIP - PUBLIC LAW CASES OFTEN INVOLVE INTERVENORS - PROCEDURE IS NOT THE SAME AS STANDING

Public interest standing (T6) is about who can commence a proceeding; intervention (T8) is about participating in someone else's. Do not conflate them. An intervenor under R. 13.02 does not need to satisfy the Downtown Eastside test, but the court considers similar concerns (utility, perspective, delay) when deciding whether to grant leave.

PART C

COMMENCING PROCEEDINGS & PLEADINGS

Five templates covering the start of a proceeding through the close of pleadings. Sample exam Q1 (commencing proceedings) maps directly to T9; Q5(b) tests subsidiary claims (T12); Q5(g) tests joinder (T7) and pleadings adequacy (T10).

Template 9 - Choice of Originating Process - Action vs Application (R. 14)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks how to commence a proceeding, what document to use, and why. This is sample exam Q1 directly: 'describe what document (for commencing the proceeding) you would use on behalf of True North and why. Further, describe what responding documents you would expect to receive back, what time periods would be involved, and what rules or other materials apply.'

ISSUE

The issue is whether [PLAINTIFF / APPLICANT] should commence the proceeding as an action by Statement of Claim (Form 14A) under R. 14.01 or as an application by Notice of Application (Form 14E.1) under R. 14.05, what responding documents [DEFENDANT / RESPONDENT] must deliver, and what time periods govern.

RULE

Originating process options (R. 14.01). Civil proceedings in the Superior Court of Justice are commenced by either (a) a Statement of Claim (Form 14A) under R. 14.03, or (b) a Notice of Application (Form 14E.1) under R. 14.05.

Statement of Claim (R. 14.03). Required for any proceeding involving disputed facts that require a trial - typically tort, contract, property, and most damages claims. The action engages full procedural process: pleadings, discovery (RR. 30–31), motions (R. 37), pre-trial conference (R. 50), trial (RR. 46–48).

Notice of Application (R. 14.05). Used for matters that can be determined on a written record without a trial - interpretation of a deed, will, contract, or other written instrument; declaration of an interest in land; enforcement of statutory rights; and the specific matters listed in R. 14.05(3) (relief expressly authorized by statute, opinion/advice/direction of the court on questions affecting trustees and similar persons, etc.). Applications proceed quickly: respondent files a Notice of Appearance (R. 38.07) and the matter is heard on affidavit evidence under R. 38.09.

Responding documents to a Statement of Claim (R. 18). Defendant must deliver a Statement of Defence within 20 days after service in Ontario; 40 days if served elsewhere in Canada or the United States; 60 days if served outside Canada and the United States.

Notice of Intent to Defend (R. 18.02). A defendant who delivers a Notice of Intent to Defend (Form 18B) within the basic period gets an extra 10 days to file the Statement of Defence.

Service of originating process (R. 16.01(1)). Originating process must be served personally or by an alternative to personal service under R. 16.03.

APPLICATION FRAMEWORK

STEP 1: Choose the originating process

Because [PLAINTIFF]'s claim is for [damages for breach of contract and negligence - disputed facts requiring trial], the proceeding is commenced by Statement of Claim under R. 14.03, in Form 14A.

An application under R. 14.05 is inappropriate because the matter is fact-intensive, requires viva voce evidence, and falls outside the categories in R. 14.05(3).

STEP 2: Identify the prescribed form and content

The Statement of Claim (Form 14A) must comply with R. 25.06 - material facts pleaded concisely, no evidence, separately numbered paragraphs, relief sought clearly stated. Endorsement under R. 4.02 is required.

STEP 3: Service

Originating process must be served personally on [DEFENDANT] under R. 16.01(1), with alternatives under R. 16.03 (e.g., service on a person residing with the defendant, mail with acknowledgment of receipt). Service must occur within six months of issuance (R. 14.08).

STEP 4: Time periods for response

[DEFENDANT] must deliver a Statement of Defence (Form 18A) within 20 days of personal service in Ontario (R. 18.01). If [DEFENDANT] delivers a Notice of Intent to Defend within the 20 days, [DEFENDANT] gets an additional 10 days, for a total of 30 days (R. 18.02).

STEP 5: Subsidiary claims

[DEFENDANT] may, in the same Statement of Defence or by separate process, raise a counterclaim under R. 27, a crossclaim under R. 28, or a third party claim under R. 29 - see T12.

CONCLUSION

[PLAINTIFF] commences the proceeding by Statement of Claim (Form 14A) under R. 14.03, served personally under R. 16.01(1). [DEFENDANT] responds by Statement of Defence (Form 18A) within 20 days of service in Ontario, or by Notice of Intent to Defend followed by Statement of Defence within 30 days. The Rules of Civil Procedure, R.R.O. 1990, Reg. 194 govern throughout.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q1 (True North v Acme): commercial dispute with disputed facts → Statement of Claim, not application. Response: 20-day Statement of Defence in Ontario.
2. Defendant served outside Ontario but in Canada or US: 40 days to defend (R. 18.01(b)).
3. Defendant served outside Canada and US: 60 days to defend (R. 18.01(c)).
4. Will interpretation, enforcement of statutory right, declaration of interest in land - application under R. 14.05(3), no Statement of Defence; respondent files Notice of Appearance (Form 38A).
5. Simplified procedure (R. 76) - claim ≤ \$200,000: Statement of Claim must contain Form 76A endorsement that R. 76 applies.

⚠ EXAM TIP - THE SAMPLE EXAM Q1 ANSWER STRUCTURE - DOCUMENT, WHY, RESPONSE, TIME, RULE

Q1 always asks for five things: (1) document, (2) why, (3) responding document, (4) time period, (5) rule. Write your answer as five labeled sentences if necessary: 'The originating process is the Statement of Claim, Form 14A, under R. 14.03. Statement of Claim is appropriate because.... The responding document is the Statement of Defence, Form 18A, under R. 18.01. Time period is 20 days from service in Ontario under R. 18.01(a). The applicable rules are RR. 14, 16, 18, 25 of the Rules of Civil Procedure.' Five sentences will score every available mark.

Template 10 - Pleadings Adequacy & Particulars - R. 25

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question asks whether a Statement of Claim or Statement of Defence is adequately pleaded, or whether a party can demand particulars. R. 25.06 governs content; R. 25.10 governs particulars.

ISSUE

The issue is whether [PARTY]'s pleading complies with R. 25.06, and whether [OTHER PARTY] is entitled to particulars under R. 25.10.

RULE

Material facts (R. 25.06(1)). Every pleading shall contain a concise statement of the material facts on which the party relies for the claim or defence, but not the evidence by which those facts are to be proved.

Specific allegations (R. 25.06(8)). Where fraud, misrepresentation, breach of trust, malice or intent is alleged, the pleading shall contain full particulars, but knowledge may be alleged as a fact without pleading the circumstances from which it is to be inferred.

Conditions precedent (R. 25.06(6)). A condition precedent need not be pleaded; non-performance shall be specifically pleaded.

Negligence Act and contributory negligence (R. 25.07(4)). Contributory negligence must be specifically pleaded.

Particulars (R. 25.10). Where a party demands particulars in writing of an allegation in the opposite party's pleading, and the opposite party fails to deliver them within seven days, the court may order particulars and may stay the action until the particulars are delivered.

Leading authority - Copland v Commodore Business Machines Ltd. (1985), 52 O.R. (2d) 586 (Master). Particulars are required where a pleading is so vague that the opposing party cannot meaningfully respond.

APPLICATION FRAMEWORK

STEP 1: Examine the pleading for material facts vs evidence

R. 25.06(1) requires concise material facts, not evidence. [PLEADING] [does / does not] satisfy this requirement because [analysis].

STEP 2: Check for special allegations requiring particulars on the face of the pleading

If the pleading alleges fraud, misrepresentation, breach of trust, malice, or intent, R. 25.06(8) requires full particulars on the face of the pleading. Mere conclusory language ('the defendant acted fraudulently') is not enough - the underlying facts must be pleaded.

STEP 3: Demand particulars in writing

Under R. 25.10, [PARTY] demands particulars of [vague allegations] in writing. The opposing party has seven days to deliver. If not delivered, [PARTY] moves for an order under R. 25.10.

STEP 4: Apply Copland

The Copland standard is whether the pleading is sufficiently clear to allow the opposing party to know the case to be met and to plead in response. If the pleading is too vague to permit a meaningful response, particulars must be ordered.

CONCLUSION

[PLEADING] [does / does not] comply with R. 25.06. [PARTY] is entitled to demand particulars under R. 25.10, and the court may order particulars and stay the action pending delivery.

⚠ EXAM TIP - FRAUD AND MISREP MUST BE PARTICULARIZED ON THE FACE OF THE PLEADING

R. 25.06(8) is one of the most testable rules in pleadings. A bare allegation of 'fraud' or 'misrepresentation' without specific particulars is defective and can be struck under R. 25.11. The same applies to malice, intent, and breach of trust. When you spot any of these allegations in the question, immediately ask: are the particulars on the face of the pleading?

Template 11 - Striking Pleadings - R. 25.11

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a party seeks to strike out a pleading or part of one. R. 25.11 is distinct from R. 21 (determination of issue): R. 25.11 strikes pleadings on procedural grounds (scandalous, frivolous, vexatious, may prejudice or delay, abuse of process); R. 21.01(1)(b) strikes for disclosing no reasonable cause of action.

ISSUE

The issue is whether [PLEADING] should be struck under R. 25.11 on the grounds that it is [scandalous / frivolous or vexatious / may prejudice or delay the fair trial / abuse of process].

RULE

Striking out (R. 25.11). The court may strike out or expunge all or part of a pleading or other document, with or without leave to amend, on the ground that the pleading or other document (a) may prejudice or delay the fair trial of the action; (b) is scandalous, frivolous or vexatious; or (c) is an abuse of the process of the court.

No evidence on R. 25.11 motion. The motion is decided on the face of the pleading; no evidence is admissible (cf. R. 21.01(2)(b)).

Distinction from R. 21. R. 21.01(1)(b) strikes a pleading that 'discloses no reasonable cause of action or defence' - a substantive test. R. 25.11 is a procedural sanction for vexatious or abusive pleadings.

APPLICATION FRAMEWORK

STEP 1: Identify the ground

[PARTY] moves under R. 25.11 on the ground that the pleading is [scandalous / frivolous / vexatious / will prejudice or delay / abuse of process]. Specify which ground.

STEP 2: Apply the test

[Scandalous] - irrelevant material that demeans or insults a party. [Frivolous] - without merit on its face. [Vexatious] - designed to harass. [Prejudice or delay] - diverts focus or extends trial. [Abuse of process] - Penner v Niagara, 2013 SCC 19 - re-litigation of decided issues, collateral attack, etc.

STEP 3: Consider leave to amend

Even if the pleading is struck, R. 25.11 permits the court to grant leave to amend. The court generally permits amendment if the defect is curable.

CONCLUSION

[PLEADING] [should / should not] be struck under R. 25.11 on the ground of [SPECIFIED GROUND]. If struck, [PARTY] should / should not be granted leave to amend.

⚠ **EXAM TIP - R. 25.11 vs R. 21.01(1)(b) - DIFFERENT TESTS, DIFFERENT EVIDENCE**

R. 25.11 is decided on the pleading alone - no affidavits. R. 21.01(1)(b) is also decided on the pleading alone, but R. 21.01(1)(a), (3) permit affidavit evidence. When asked 'how do I strike this defence?', the answer turns on whether the defence has no legal basis (R. 21.01(1)(b) - no reasonable defence) or is procedurally improper (R. 25.11 - scandalous/abusive).

Template 12 - Subsidiary Claims - Counterclaim, Crossclaim, Third Party Claim (RR. 27, 28, 29)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a defendant wants to assert a claim against the plaintiff (counterclaim), against a co-defendant (crossclaim), or against a non-party (third party claim). Sample exam Q5(b) tests this directly: Reliable, sued by True North, wants to use a 'Counterclaim' against its driver. The label is wrong - claim against a non-party is a third party claim under R. 29.

ISSUE

The issue is whether [DEFENDANT]'s proposed claim against [TARGET] should be brought as a counterclaim under R. 27, a crossclaim under R. 28, or a third party claim under R. 29.

RULE

Counterclaim (R. 27.01). A defendant may assert, by way of counterclaim in the same proceeding, any right or claim against the plaintiff. The counterclaim is included in the same Statement of Defence and Counterclaim (Form 27A) and is treated as a separate action between the defendant (counterclaim plaintiff) and the plaintiff (counterclaim defendant).

Counterclaim against the plaintiff and another person (R. 27.02). A counterclaim may also be asserted against a person who is not already a party where the claim arises out of the same transaction or occurrence as the main action.

Crossclaim (R. 28.01). A defendant may, by way of crossclaim, assert against a co-defendant any claim for (a) contribution or indemnity; or (b) other relief related to the subject matter of the main action.

Third party claim (R. 29.01). A defendant may commence a third party claim against any person who is not a party to the main action, where the defendant claims (a) contribution or indemnity; (b) relief connected with the subject matter of the main action and substantially the same as relief claimed by the plaintiff against the defendant; or (c) relief that involves a question or issue between the defendant and the third party that should properly be determined together with the main action.

Time limit for third party claim (R. 29.02). A third party claim shall be commenced by issuing a Third Party Claim (Form 29A) within 10 days after delivery of the Statement of Defence, or with leave of the court.

APPLICATION FRAMEWORK

STEP 1: Identify the relationship between the defendant and the target

[DEFENDANT] wants to assert a claim against [TARGET]. Determine: is [TARGET] (a) the plaintiff (counterclaim, R. 27); (b) a co-defendant (crossclaim, R. 28); or (c) a non-party (third party claim, R. 29)?

STEP 2: Apply the correct rule and form

[Counterclaim] - Form 27A; included in Statement of Defence and Counterclaim; same time limits as defence. [Crossclaim] - Form 28A; included in Statement of Defence and Crossclaim; served on co-

defendant. [Third party claim] - Form 29A; issued separately within 10 days after delivery of Statement of Defence (R. 29.02), or with leave.

STEP 3: Confirm the claim arises out of the same transaction or occurrence

All three subsidiary claims must be related to the subject matter of the main action - same transaction, same series of transactions, or same factual matrix. A wholly unrelated claim should be commenced as a separate action.

CONCLUSION

[DEFENDANT]'s claim against [TARGET] should be brought as a [counterclaim under R. 27 / crossclaim under R. 28 / third party claim under R. 29], using [Form 27A / 28A / 29A], within [the same time as the Statement of Defence / 10 days after delivery of the Statement of Defence under R. 29.02].

POTENTIAL EXAM SCENARIOS

1. Sample exam Q5(b): Reliable (defendant) sued by True North (plaintiff) wants to claim against the driver, who is NOT a party. Reliable's claim is a THIRD PARTY CLAIM under R. 29.01, NOT a counterclaim. Calling it a 'counterclaim' (as the question does) is incorrect - counterclaim is against the plaintiff. Statement Q5(b) is FALSE.
2. Defendant sued for breach of contract wants to claim damages from plaintiff for related breach - counterclaim, R. 27.
3. Co-defendants in a motor vehicle action each blaming the other - crossclaim for contribution or indemnity, R. 28.
4. Defendant wants to bring in non-party for contribution under the Negligence Act - third party claim, R. 29.

⚠ EXAM TIP - COUNTERCLAIM vs THIRD PARTY CLAIM IS A SAMPLE-EXAM RECURRING TRAP

The vocabulary matters. 'Counterclaim' is reserved for claims against the plaintiff (with the limited extension under R. 27.02 to add a person related to the same transaction). A claim by a defendant against a non-party for contribution or indemnity is a third party claim under R. 29.01 - NOT a counterclaim. Always identify the relationship before naming the procedure.

Template 13 - Simplified Procedure - R. 76 (\$200,000 Threshold)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the claim is for \$200,000 or less in money or property (excluding interest and costs) and falls within the categories in R. 76.02. Simplified procedure is mandatory for qualifying actions; failure to use it where it should have been used carries cost penalties under R. 76.13.

ISSUE

The issue is whether [PLAINTIFF]'s claim falls within the simplified procedure under R. 76, what procedural restrictions apply, and what cost consequences flow from using or failing to use simplified procedure.

RULE

Mandatory application (R. 76.02(1)). Simplified procedure is mandatory for actions where the plaintiff's claim is exclusively (a) for money in an amount not exceeding \$200,000, exclusive of interest and costs; (b) for real or personal property where the fair market value of the property as at

the date the action is commenced does not exceed \$200,000; or (c) for a combination of (a) and (b) totalling not more than \$200,000. The threshold has been \$200,000 since January 1, 2020 (raised from \$100,000).

Discovery cap (R. 76.04(2)). Oral examinations for discovery are limited to a total of three hours, regardless of the number of parties or persons being examined. (Compare R. 31.05.1 - seven hours under ordinary procedure.)

No jury trial (R. 76.02.1). Trials in simplified procedure proceed by judge alone. Jury notices may be filed only in actions for slander, libel, malicious arrest, malicious prosecution, or false imprisonment (which must then continue under ordinary procedure).

Five-day trial maximum (R. 76.10.1). Trials are scheduled for a maximum of five days.

Cost cap (R. 76.12.1). Costs are capped at \$50,000 (excl. HST), and disbursements at \$25,000 (excl. HST), except where an Act provides otherwise.

Set-down deadline (R. 76.08). The action must be set down for trial within 180 days after the first Statement of Defence or Notice of Intent to Defend.

Cost consequence for failing to use simplified procedure (R. 76.13). A plaintiff who recovers \$200,000 or less but used ordinary procedure may be denied costs or have costs reduced. Conversely, a plaintiff using simplified procedure who is awarded more than \$200,000 has the recovery capped or otherwise dealt with at the court's discretion.

Per plaintiff per defendant - Sharma v Bublyk, 2025 ONSC 6245. The \$200,000 ceiling applies per plaintiff per defendant; in multi-party actions the aggregate may exceed \$200,000 while each individual claim remains within R. 76.

APPLICATION FRAMEWORK

STEP 1: Determine whether the claim falls within R. 76.02

Because [PLAINTIFF]'s claim is for [DAMAGES] - not exceeding \$200,000 exclusive of interest and costs - and consists of [money / property / combination], simplified procedure is mandatory under R. 76.02(1).

STEP 2: Endorse the originating process

Under R. 76.02(2), the Statement of Claim must contain the endorsement that the action is under R. 76 (Form 76A - Notice Whether Action Under Rule 76).

STEP 3: Apply the procedural restrictions

Discovery is limited to three hours total (R. 76.04(2)); no jury trial (R. 76.02.1); five-day trial maximum (R. 76.10.1); set down within 180 days of defence (R. 76.08); cost cap of \$50,000 (excl. HST) (R. 76.12.1).

STEP 4: Address the per-plaintiff per-defendant rule (Sharma v Bublyk)

Where there are multiple plaintiffs or multiple defendants, the \$200,000 limit applies per plaintiff per defendant. Two plaintiffs each claiming up to \$200,000 against two defendants creates a theoretical aggregate of \$800,000 still within R. 76.

CONCLUSION

Because the claim is within the \$200,000 threshold, simplified procedure under R. 76 is mandatory. The Statement of Claim must be endorsed accordingly (Form 76A); discovery is capped at three hours; no jury; five-day trial maximum; cost cap \$50,000 (excl. HST); set down within 180 days. Failure to use simplified procedure where required attracts cost penalties under R. 76.13.

POTENTIAL EXAM SCENARIOS

1. Personal injury claim with damages assessed at \$150,000 → R. 76 mandatory; Form 76A endorsement.
2. Two plaintiffs, two defendants, each claim \$190,000 against each defendant → Sharma v Bublyk: each individual claim under \$200,000, R. 76 applies, even though aggregate is \$760,000.
3. Action initially within ordinary procedure where damages crystallize below \$200,000 - Ingratta v McDonald, 2024 ONSC 371: late transition to R. 76 not generally permitted; simplified status assessed at commencement.
4. Defamation, libel, slander, malicious arrest, malicious prosecution, false imprisonment with claim under \$200,000 - jury trial available, but action must continue under ordinary procedure (R. 76.02.1).
5. Claim for \$190,000 plus pre-judgment interest of \$30,000 - interest excluded; R. 76 still applies.

⚠ EXAM TIP - \$200,000 SINCE 2020 - NOT \$100,000 - AND \$50,000 / \$25,000 COST CAP

The R. 76 threshold was raised from \$100,000 to \$200,000 effective January 1, 2020. Outdated study materials still cite \$100,000. The Small Claims Court limit also moved from \$25,000 to \$35,000, and to \$50,000 effective October 1, 2025. The cost cap under R. 76.12.1 (\$50,000 / \$25,000 excl. HST) is also testable in True/False format. Always state the current numbers.

PART D

JURISDICTION & SERVICE

Four templates covering the threshold question of whether an Ontario court can hear the proceeding (T14 jurisdiction simpliciter; T15 forum non conveniens) and how originating process and other documents are served (T16 in Ontario; T17 outside Ontario). Sample exam Q5(h) and Q5(i) test these directly.

Template 14 - Real and Substantial Connection - Van Breda Four Presumptive Connecting Factors

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a defendant resides outside Ontario and challenges the Ontario court's jurisdiction to hear the action. Sample exam Q5(h) tests this directly: 'A defendant from outside of Canada may not be sued by a plaintiff from outside of Canada using a court process in Canada.' That statement is FALSE if a presumptive connecting factor exists.

ISSUE

The issue is whether the Ontario Superior Court of Justice has jurisdiction simpliciter over [DEFENDANT], a person resident outside Ontario, in respect of [PLAINTIFF]'s claim for [CAUSE_OF_ACTION], applying the four presumptive connecting factors from Club Resorts Ltd. v Van Breda, 2012 SCC 17.

RULE

Constitutional foundation. The basis for assumed jurisdiction is the 'real and substantial connection' test, grounded in order, fairness, and comity (Morguard Investments Ltd. v De Savoye, [1990] 3 S.C.R. 1077; Hunt v T&N plc, [1993] 4 S.C.R. 289).

The four presumptive connecting factors (Van Breda, paras 90 and 99) - for tort claims. A presumptive connecting factor presumptively entitles an Ontario court to assume jurisdiction over a tort claim: (1) the defendant is domiciled or resident in the province; (2) the defendant carries on business in the province; (3) the tort was committed in the province; (4) a contract connected with the dispute was made in the province.

'Carrying on business' (Van Breda paras 87–88). Requires some form of actual, not merely virtual, presence in the province - physical or demonstrable representation through agents.

Two-stage analysis. Stage 1: does a presumptive connecting factor link the dispute to the province? Stage 2: has the defendant rebutted the presumption by establishing that the connecting factor points to no real relationship between the subject matter of the litigation and the forum, or only a weak relationship?

Refinement at stage 2 - Sinclair v Amex Canada Inc., 2025 SCC ____ (5-4 majority Côté and Brown JJ.; Jamal J. dissenting). Jurisdiction is assessed in relation to each defendant individually; a contract's connection for one defendant cannot be aggregated to extend jurisdiction over another. The presumption created by a contract connected with the dispute can be rebutted where the contract has only a tenuous or weak connection to the actual events giving rise to the claim.

Forum non conveniens is separate. Once jurisdiction is established, the defendant must invoke forum non conveniens (a discretionary remedy) - see T15.

Plaintiff's residence is not a connecting factor. Van Breda para 86: the presence of the plaintiff in the jurisdiction is not, on its own, a presumptive connecting factor.

APPLICATION FRAMEWORK

STEP 1: Identify the cause of action and the defendant's connections to Ontario

[PLAINTIFF]'s claim is for [TORT / BREACH OF CONTRACT / OTHER]. [DEFENDANT] [is/is not] domiciled or resident in Ontario; [carries on/does not carry on] business in Ontario; the tort [was/was not] committed in Ontario; the contract [was/was not] made in Ontario.

STEP 2: Test each of the four presumptive connecting factors

(1) Domicile/residence in Ontario - [analyze]. (2) Carries on business in Ontario - physical presence required (Van Breda para 87) - [analyze]. (3) Tort committed in Ontario - locus of wrongful conduct - [analyze]. (4) Contract connected with the dispute made in Ontario - Lapointe-Rosenstein 2016 SCC 30 confirms a defendant need not be a party to the contract, provided the contract is connected to the dispute and that defendant - [analyze].

STEP 3: Stage 2 - defendant's burden to rebut

If a presumptive connecting factor applies, [DEFENDANT] bears the burden of rebutting the presumption. Per *Sinclair v Amex Canada* (2025), the rebuttal stage examines the strength of the connection. [DEFENDANT] may rebut by showing the factor points only to a weak or tenuous relationship with the actual subject matter of the litigation.]

STEP 4: Conclude on jurisdiction simpliciter

If at least one connecting factor applies and is not rebutted, the Ontario court has jurisdiction simpliciter. The defendant's separate option to challenge on forum non conveniens grounds is then available - see T15.

CONCLUSION

Because [presumptive connecting factor X] applies and [is / is not] rebutted on these facts, the Ontario Superior Court of Justice [has / does not have] jurisdiction simpliciter over [DEFENDANT]. If jurisdiction is established, [DEFENDANT] may move under R. 17.06 / common law for a stay on forum non conveniens grounds.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q5(h): Foreign plaintiff suing foreign defendant in Ontario - POSSIBLE if a presumptive connecting factor exists (e.g., contract made in Ontario, tort committed in Ontario, defendant carries on business in Ontario). The bare statement that this is impossible is FALSE.
2. Cuban resort accident (Van Breda facts): contract made in Ontario, defendant carrying on business in Ontario through agents → jurisdiction established.
3. Italian water-taxi accident, Ontario credit-card concierge contract (*Sinclair v Amex Canada* 2025): contract made in Ontario but only weak connection to the actual events → presumption rebutted at stage 2; no jurisdiction.
4. Securities misrepresentation by foreign issuer with Ontario shareholders - examine 'tort committed in Ontario' carefully (place of damage analysis).
5. Online defamation accessible in Ontario - *Haaretz.com v Goldhar*, 2018 SCC 28: not analyzed under Van Breda but illustrative of difficult tort-locus questions.

⚠ EXAM TIP - PLAINTIFF'S RESIDENCE IS NOT A FACTOR - STAGE 1 vs STAGE 2 IS CRITICAL

Two recurring errors: (1) candidates list 'plaintiff is in Ontario' as a connecting factor - Van Breda para 86 expressly rejects this; (2) candidates conflate the stage 1 search for a connecting factor with the stage 2 rebuttal. Always state the four factors, find one (or none), then move to rebuttal as a separate analytical step. The 2025 *Sinclair v Amex Canada* decision rebalanced the rebuttal stage - note the refinement explicitly.

Template 15 - Forum Non Conveniens - Discretionary Stay Where Another Forum Is Clearly More Appropriate

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use after jurisdiction simpliciter is established, when [DEFENDANT] argues that another jurisdiction (e.g., another province, another country) is the more appropriate forum and the Ontario action should be stayed. The doctrine is discretionary and the burden is on the defendant.

ISSUE

The issue is whether the Ontario Superior Court of Justice should decline to exercise its established jurisdiction on the ground that [ALTERNATIVE FORUM] is clearly a more appropriate forum, applying the doctrine of forum non conveniens.

RULE

Doctrine and burden. Once jurisdiction is established (Van Breda), the defendant may invoke forum non conveniens to ask the court to decline jurisdiction in favour of a clearly more appropriate forum. The burden is on the defendant to establish that another forum is clearly more appropriate (Van Breda paras 100–112).

The court does NOT raise it on its own motion (Van Breda para 101). The decision to invoke the doctrine rests with the parties, not the court.

Statutory recognition (Courts of Justice Act, R.S.O. 1990, c. C.43, s. 106). The court may stay any proceeding before it on such terms as are considered just.

Factors (Van Breda para 105). The court considers comparative convenience and expense for the parties and witnesses; applicable law; loss of legitimate juridical advantage; location of evidence; and the desirability of avoiding multiplicity of proceedings and conflicting decisions.

'Clearly' more appropriate. The burden is high: the alternative forum must be clearly, not merely marginally, more appropriate. Doubt resolves in favour of the chosen forum (Van Breda paras 108–109).

APPLICATION FRAMEWORK

STEP 1: Confirm jurisdiction simpliciter is established

Forum non conveniens is engaged only after Van Breda jurisdiction simpliciter is established. If jurisdiction is not established, the question does not arise.

STEP 2: Identify the alternative forum

[DEFENDANT] proposes [ALTERNATIVE FORUM] as the more appropriate forum. The forum must be available - [DEFENDANT] must be amenable to suit there.

STEP 3: Apply the multi-factor test

Consider: (a) location of parties and witnesses; (b) location of evidence; (c) place where contract was made and is to be performed; (d) law applicable to the dispute; (e) loss of legitimate juridical advantage to plaintiff (e.g., procedural rights, limitations regime); (f) desirability of avoiding multiplicity of proceedings.

STEP 4: Apply the 'clearly more appropriate' standard

Doubt resolves in favour of the plaintiff's chosen forum. [DEFENDANT] must show that [ALTERNATIVE FORUM] is clearly more appropriate - not merely an equally appropriate alternative.

CONCLUSION

Weighing the factors, [ALTERNATIVE FORUM] is [clearly more appropriate / not clearly more appropriate]. The Ontario action [should / should not] be stayed under CJA s. 106. If stayed, the court may attach terms to ensure fairness (e.g., undertaking by defendant to attend to the alternative forum, to waive limitations defences, etc.).

⚠ EXAM TIP - JURISDICTION FIRST, FORUM NON SECOND - DO NOT MERGE THE TWO

Van Breda is emphatic that jurisdiction simpliciter and forum non conveniens are distinct analytical exercises. Always answer them in order. The plaintiff bears the burden on jurisdiction simpliciter (presumptive connecting factor); the defendant bears the burden on forum non conveniens (clearly more appropriate forum). The court does not decline jurisdiction on its own motion.

Template 16 - Service of Documents in Ontario - R. 16

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks how documents are served on a party in Ontario. Sample exam Q5(i) tests originating process service: 'Originating processes do not typically need to be served personally.' That statement is FALSE - R. 16.01(1) requires personal service for originating process, with limited alternatives under R. 16.03.

ISSUE

The issue is whether [DOCUMENT] has been validly served on [PARTY] in Ontario in compliance with R. 16.

RULE

Originating process - personal service required (R. 16.01(1)). An originating process (Statement of Claim, Notice of Application, etc.) must be served personally as provided in R. 16.02 or by an alternative to personal service as provided in R. 16.03.

Personal service on individuals (R. 16.02(1)(a)). By leaving a copy of the document with the individual.

Personal service on a corporation (R. 16.02(1)(c)). By leaving a copy with an officer, director, or agent of the corporation, or with a person at any place of business of the corporation who appears to be in control or management of the place of business.

Personal service on partnership / sole proprietorship (R. 16.02(1)(d)–(e)). Specific rules apply.

Alternatives to personal service (R. 16.03). May include leaving a copy at the party's residence with an apparently adult person and mailing a copy to the residence within five days; mailing with acknowledgment of receipt; or service on solicitor of record.

Substituted service (R. 16.04). Where it is impractical to effect prompt service, the court may order substituted service or dispense with service. The applicant must show reasonable efforts to effect personal service and that the proposed substituted method is likely to bring the document to the party's attention.

Service of subsequent documents (R. 16.01(4)). Documents other than originating process may be served by the methods in R. 16.05 - including by mail, fax, email (with consent or court order), and electronic document exchange.

APPLICATION FRAMEWORK

STEP 1: Determine whether the document is an originating process

Statement of Claim, Notice of Application, Notice of Action, Counterclaim against a non-party,

Crossclaim, and Third Party Claim are originating processes - personal service required.

STEP 2: Apply the appropriate method

If personal service is required, use R. 16.02. If personal service is impractical, consider R. 16.03 alternatives (residence + mail) or R. 16.04 substituted service by court order.

STEP 3: If substituted service is sought, demonstrate impracticability

Move ex parte under R. 16.04; affidavit must set out reasonable efforts to effect personal service and propose a method likely to bring the document to the party's attention (e.g., social media, email, publication).

STEP 4: For subsequent documents, R. 16.05 applies

Once a party has appeared, documents are served on the party's lawyer of record by hand, mail, fax, email (where consent or court order), or electronic document exchange (where in use).

CONCLUSION

[DOCUMENT] [has / has not] been validly served on [PARTY] in compliance with R. 16. If invalid, [PARTY] may bring a motion under R. 16.08 to set aside service.

⚠ EXAM TIP - Q5(i) IS A RECURRING TRAP - ORIGINATING PROCESS = PERSONAL SERVICE

The sample exam statement that 'Originating processes do not typically need to be served personally' is FALSE. R. 16.01(1) is explicit: originating process is served personally OR by an alternative to personal service under R. 16.03. Both R. 16.02 and R. 16.03 are forms of 'service of originating process'; both differ from R. 16.05 (subsequent documents). Be precise.

Template 17 - Service Outside Ontario - R. 17

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever an originating process must be served on a party outside Ontario. R. 17 distinguishes between service without leave (R. 17.02 - enumerated categories), service with leave (R. 17.03), and the related question of jurisdictional challenge under R. 17.06.

ISSUE

The issue is whether [PLAINTIFF] may serve originating process on [DEFENDANT] outside Ontario without leave under R. 17.02, or must obtain leave under R. 17.03, and whether [DEFENDANT] may move to set aside service or stay the proceeding under R. 17.06.

RULE

Service without leave (R. 17.02). A party may serve an originating process or notice of a reference outside Ontario without a court order in the categories enumerated, including: (a) tort committed in Ontario; (b) contract made in Ontario; (c) contract by its express terms governed by Ontario law; (d) contract to be performed in Ontario; (e) damages sustained in Ontario arising from a tort or breach of contract wherever committed; (f) injunction to be enforced in Ontario; (g) real or personal property in Ontario; (h) administration of an estate of a deceased person who at the time of death was a resident of Ontario; and many more - see the full list in R. 17.02.

Service with leave (R. 17.03). Where service outside Ontario is not authorized by R. 17.02, the court may grant leave on motion if the case is a proper one for service outside Ontario. Affidavit must set out the basis for the application.

Manner of service outside Ontario (R. 17.05). May be effected by personal service in accordance with the law of the foreign jurisdiction; in a contracting state of the Hague Service Convention, in accordance with the Convention; or as the court may direct.

Setting aside service (R. 17.06). A party against whom an originating process has been served outside Ontario may move, before delivering a defence, to (a) have service set aside or the proceeding stayed; (b) dismiss for lack of jurisdiction; or (c) stay on forum non conveniens grounds. Bringing the motion does not constitute attornment.

APPLICATION FRAMEWORK

STEP 1: Identify whether R. 17.02 authorizes service without leave

Examine the enumerated categories in R. 17.02. If the claim falls within one (e.g., contract made in Ontario, tort committed in Ontario, damages sustained in Ontario), service is without leave.

STEP 2: If R. 17.02 does not apply, seek leave under R. 17.03

Move ex parte for leave; affidavit must demonstrate that the case is a proper one for service outside Ontario - typically by reference to a real and substantial connection (Van Breda factors).

STEP 3: Effect service in accordance with R. 17.05

Choose the appropriate method - personal service per the foreign law, Hague Convention if applicable, or by court direction.

STEP 4: Anticipate R. 17.06 challenge

[DEFENDANT] may move under R. 17.06 to set aside service or stay the proceeding. Grounds include lack of real and substantial connection (Van Breda) and forum non conveniens (T15). The motion does not constitute attornment to Ontario jurisdiction.

CONCLUSION

[PLAINTIFF] [may serve without leave under R. 17.02 / must obtain leave under R. 17.03], using the manner of service prescribed by R. 17.05. [DEFENDANT] may challenge by motion under R. 17.06 without attorning.

⚠ EXAM TIP - R. 17.02 IS A CHECKLIST - RUN THE FULL LIST BEFORE INVOKING R. 17.03

R. 17.02 enumerates a long list of categories. Many cross-border disputes fall within at least one. Always run the full list before assuming leave is required. The most common categories tested are (b) contract made in Ontario, (e) damages sustained in Ontario, and (g) property in Ontario.

PART E

CLASS PROCEEDINGS

Two templates covering the certification test for class proceedings (T18) and the funding/settlement framework (T19). Class proceedings have appeared as a sub-issue but rarely as a 20-mark question; expect a focused question on certification or funding.

Template 18 - Class Action Certification - Class Proceedings Act, 1992 s. 5

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a representative plaintiff seeks certification of a proposed class proceeding. The five-part test under s. 5(1) of the Class Proceedings Act, 1992, S.O. 1992, c. 6, governs, with the additional 'predominant purpose' element added to s. 5(1.1) by the Smarter and Stronger Justice Act, 2020.

ISSUE

The issue is whether [REPRESENTATIVE PLAINTIFF]'s proposed class proceeding against [DEFENDANT] should be certified under s. 5 of the Class Proceedings Act, 1992.

RULE

Five-part certification test (CPA s. 5(1)). The court shall certify a class proceeding if (a) the pleadings disclose a cause of action; (b) there is an identifiable class of two or more persons that would be represented by the representative plaintiff; (c) the claims of the class members raise common issues; (d) a class proceeding would be the preferable procedure for the resolution of the common issues; and (e) there is a representative plaintiff who would fairly and adequately represent the interests of the class, has produced a workable plan for the proceeding, and does not have an interest in conflict with the interests of other class members.

Preferable procedure - superiority and predominance (CPA s. 5(1.1), added by Smarter and Stronger Justice Act, 2020). A class proceeding is the preferable procedure under s. 5(1)(d) only if it is superior to all reasonably available means of resolving the claims AND the common issues predominate over individual issues.

Leading authority on cause of action - Hollick v Toronto (City), 2001 SCC 68. The s. 5(1)(a) standard mirrors the R. 21.01(1)(b) 'plain and obvious' threshold - the claim is struck only if it is plain and obvious that the claim cannot succeed.

Leading authority on preferable procedure - AIC Limited v Fischer, 2013 SCC 69. The preferable procedure inquiry is conducted through the lens of the three goals of class proceedings: judicial economy, behaviour modification, and access to justice.

Common issues (CPA s. 1). Common but not identical issues of fact, OR common but not identical issues of law that arise from common but not necessarily identical facts.

APPLICATION FRAMEWORK

STEP 1: (a) Cause of action - Hollick / R. 21.01(1)(b) standard

The pleading discloses a cause of action unless it is plain and obvious that the claim cannot succeed. Apply the same threshold as a motion to strike under R. 21.

STEP 2: (b) Identifiable class of two or more persons

Define the class with objective criteria that are not merits-based. The class definition must allow a person to determine whether [he/she/it] is a member without prejudging the merits.

STEP 3: (c) Common issues

Identify issues of fact or law that are common to the class. The common issues need not predominate (under s. 5(1)(c) alone), but must be a substantial ingredient of each class member's claim. The 'predominate' requirement enters at s. 5(1)(d) via s. 5(1.1).

STEP 4: (d) Preferable procedure - s. 5(1.1) two-step

Class proceeding is preferable only if (i) superior to all reasonably available alternatives (joinder, test cases, regulatory action, individual actions), AND (ii) common issues predominate over individual issues. AIC v Fischer guides the analysis: judicial economy, behaviour modification, access to justice.

STEP 5: (e) Representative plaintiff and litigation plan

[REPRESENTATIVE PLAINTIFF] must (i) fairly and adequately represent the class; (ii) have produced a workable plan with notice, discovery, and trial steps; (iii) have no interest in conflict with the class.

CONCLUSION

Applying CPA s. 5(1) and the s. 5(1.1) preferable-procedure refinement, the proposed class proceeding [should / should not] be certified. If certified, the court may impose conditions and define common issues precisely (CPA s. 8).

△ EXAM TIP - S. 5(1.1) PREDOMINANCE + SUPERIORITY IS THE 2020 ADDITION

The Smarter and Stronger Justice Act, 2020 added s. 5(1.1) - preferable procedure now requires both superiority over alternatives AND predominance of common issues. Older commentary that treats preferable procedure as a single fluid inquiry is outdated. State the s. 5(1.1) two-step explicitly.

Template 19 - Class Action Settlement, Costs, Funding & Contingency - CPA ss. 31–33.1

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks about the financial or settlement architecture of a class proceeding - court approval of settlement, the no-costs default, the Class Proceedings Fund, third-party litigation funding, or contingency fee approval.

ISSUE

The issue is the financial and settlement framework governing the proposed class proceeding - specifically, [court approval of settlement / costs allocation / Class Proceedings Fund support / contingency fee approval / third-party funding approval].

RULE

Settlement approval (CPA s. 27.1, formerly s. 29). A class proceeding may be settled, discontinued, or abandoned only with the approval of the court, on such terms as the court considers appropriate. Notice to class members may be required.

Costs (CPA s. 31). In exercising its discretion with respect to costs, the court may consider whether the class proceeding was a test case, raised a novel point of law, or involved a matter of public interest. The default is no presumption of costs; costs depend on the circumstances.

Class Proceedings Fund - Law Society Act ss. 59.1–59.5. A representative plaintiff may apply for support from the Class Proceedings Fund. If granted, the Fund pays disbursements and indemnifies for cost awards, in exchange for a 10% levy on any judgment or settlement and recovery of disbursements.

Contingency fees (Solicitors Act, R.S.O. 1990, c. S.15, ss. 28.1; CPA s. 32). Solicitor's fees in a class proceeding must be approved by the court. The court reviews the contingency agreement for fairness and reasonableness, considering risk, time, and outcome.

Third-party litigation funding. Not codified in the CPA but recognized in case law (e.g., *Houle v St. Jude Medical Inc.*, 2018 ONSC 6352). Court approval of the funding agreement is generally required to ensure fairness, the absence of champerty, and protection of class interests.

APPLICATION FRAMEWORK

STEP 1: If settlement - court approval under CPA s. 27.1

[REPRESENTATIVE PLAINTIFF] moves for approval of the settlement; affidavit material addresses fairness, reasonableness, and adequacy of the settlement, range of likely outcomes at trial, and any objections from class members. Court may require notice and a fairness hearing.

STEP 2: Costs - apply s. 31 considerations

Costs are not presumptive. The court considers whether the proceeding was a test case, raised a novel point of law, or was in the public interest. Class proceedings legislation contemplates that costs may be lower than ordinary litigation.

STEP 3: Class Proceedings Fund support

Apply to the Law Foundation of Ontario for support under Law Society Act ss. 59.1–59.5. If granted, the Fund covers disbursements and indemnifies for cost awards in exchange for a 10% levy on judgment/settlement.

STEP 4: Contingency fee approval

Class counsel must obtain court approval of fees under Solicitors Act s. 28.1 and CPA s. 32. Court applies a 'fair and reasonable' standard, weighing risk, hours invested, and outcome multiplier.

STEP 5: Third-party funding

If a third-party funder is involved, the funding agreement must be approved by the court. Key considerations: champerty/maintenance, control over litigation decisions, percentage to funder, protection of class interests.

CONCLUSION

The financial and settlement architecture of the class proceeding is governed by CPA ss. 27.1, 31, 32 and the Law Society Act ss. 59.1–59.5. Court approval is required for settlement, contingency fees, and any third-party funding. The Class Proceedings Fund is available subject to the 10% levy.

⚠ EXAM TIP - NO-COSTS DEFAULT IS A MYTH - S. 31 IS DISCRETIONARY

Class proceedings do not have a true 'no-costs' regime. CPA s. 31 simply gives the court discretion to consider whether the action was a test case, novel, or in the public interest. Costs are still possible - and substantial costs awards have been made in unsuccessful certifications. State the discretionary nature of s. 31 explicitly.

PART F

MOTIONS & INTERLOCUTORY RELIEF

Four templates covering motion procedure (T20), evidence on motions (T21), the RJR-MacDonald injunction test (T22), and Mareva/Anton Piller orders (T23). Sample exam Q5(d) (costs at motions) and Q5(j) (evidence on motions by affidavit) test these.

Template 20 - Motion Procedure - R. 37

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks how a motion is brought, what materials are required, what notice is needed, and who hears the motion. R. 37 sets the basic procedural framework; specific motions (e.g., R. 20 summary judgment, R. 21 determination of issue) layer on top.

ISSUE

The issue is the procedure by which [MOVING PARTY] should bring [MOTION TYPE], including form, notice, materials, and the hearing process under R. 37.

RULE

Notice of motion (R. 37.06). A motion is commenced by Notice of Motion (Form 37A) setting out the relief sought, the grounds, and the documentary evidence to be relied on.

Confirmation of motion (R. 37.10.1). For motions in writing or in person, the moving party must file a confirmation of motion at least three days before the motion. Without confirmation, the motion is not heard.

Service of motion materials (R. 37.07). Notice of motion and motion record must be served at least seven days before the hearing (or four days if the motion is on consent or unopposed).

Motion record (R. 37.10). The moving party serves and files a motion record containing: (a) table of contents; (b) notice of motion; (c) all affidavits and other evidence; (d) any other relevant material in the court file. Responding party files responding record (R. 37.10).

Where motions may be heard (R. 37.03). Generally before a judge in the region where the proceeding was commenced, except certain interlocutory motions before an Associate Judge under R. 37.02.

Costs of motions (R. 37.18). Costs are in the discretion of the court; usual order is costs in the cause, costs to the successful party, or costs in any event of the cause.

Without notice motions (R. 37.07(2)). Permissible only in cases of urgency or where notice would defeat the purpose of the motion (e.g., Mareva injunction, Anton Piller order, ex parte substituted service).

APPLICATION FRAMEWORK

STEP 1: Identify the relief and the rule authorising the motion

[MOVING PARTY] seeks [RELIEF] under R. [SPECIFIC RULE]. The motion must comply with both the specific rule and the general motion procedure under R. 37.

STEP 2: Prepare the Notice of Motion (Form 37A)

Set out (i) the precise relief sought; (ii) the grounds for the motion (rule numbers and supporting facts in summary form); (iii) the documentary evidence (affidavits) to be relied on.

STEP 3: Assemble the motion record

Table of contents, Notice of Motion, all affidavits, exhibits, and any other relevant material - bound and tabbed under R. 37.10. Serve and file at least seven days before the hearing.

STEP 4: File confirmation of motion three days before

R. 37.10.1: confirmation of motion is filed at least three days before the hearing date or the motion is not heard. The confirmation indicates whether the matter is contested, agreed-upon time estimate, and any preliminary issues.

STEP 5: Forum - judge or Associate Judge

Most interlocutory motions may be heard by an Associate Judge under R. 37.02. Trial-related motions, motions for declaratory relief, and certain other categories must go before a judge. Sample exam Q5(f) tests the role of Associate Judges (formerly Masters) in settlement discussions.

CONCLUSION

[MOVING PARTY] brings the motion by Notice of Motion (Form 37A) under R. 37.06, served with the motion record at least seven days before the hearing under R. 37.07/37.10. Confirmation of motion is filed three days before under R. 37.10.1. The motion is heard before [a judge / an Associate Judge under R. 37.02].

⚠ EXAM TIP - Q5(d): COSTS FOLLOW THE EVENT AT BOTH TRIALS AND MOTIONS

Sample exam Q5(d) states: 'Losing parties pay costs at trials, but losing parties do not pay costs on motions.' This is FALSE. R. 57.01(1) provides that the court has discretion to award costs in any proceeding, and costs follow the event in both trials and motions absent reason to depart. R. 37.18 confirms costs of motions. Always state the costs-follow-event default.

Template 21 - Evidence on Motions - R. 39 (Affidavits and Cross-Examination)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks how evidence is presented on a motion. Sample exam Q5(j) tests this directly: 'Evidence on motions is typically brought by way of affidavit.' That statement is TRUE - R. 39.01(1) requires affidavit evidence by default; oral evidence requires leave.

ISSUE

The issue is the form and conduct of evidence on a motion under R. 39.

RULE

Affidavit evidence (R. 39.01(1)). Evidence on a motion may be given by affidavit unless directed otherwise by these Rules or by the court.

Oral evidence (R. 39.01(4)). The court may permit a witness to give oral evidence at the hearing of a motion, on conditions imposed by the court.

Cross-examination on affidavit (R. 39.02). A party who has served a Notice of Motion or responded to one may cross-examine the deponent of an affidavit served by the other party. The cross-examination is conducted out of court before a court reporter, similar to an examination for discovery.

Examination by leave on a pending motion (R. 39.03). A party may, with leave of the court, examine any person under oath for the purpose of obtaining evidence to be used at the hearing of a pending motion or application.

Hearsay in affidavits (R. 39.01(4)/(5)). Affidavits in support of motions may contain statements of the deponent's information and belief, with respect to facts that are not contentious, if the source of

the information and the fact of the belief are specified.

APPLICATION FRAMEWORK

STEP 1: Default - affidavit evidence

Evidence on a motion is by affidavit under R. 39.01(1). The affiant swears to the truth of the affidavit; exhibits are attached and identified.

STEP 2: Cross-examination on the affidavit

Once an affidavit is served, the opposing party may cross-examine under R. 39.02. The transcript may be filed and used at the hearing.

STEP 3: Oral evidence by leave

If oral evidence is necessary (e.g., for credibility on summary judgment under R. 20.04(2.2) mini-trial), seek leave under R. 39.01(4). On R. 20 motions, the mini-trial procedure is specifically authorized.

STEP 4: Hearsay considerations

Affidavits may include hearsay 'on information and belief' for non-contentious facts (R. 39.01(4)/(5)) - the source must be specified. Contentious facts require first-hand evidence or independent verification.

CONCLUSION

Evidence on a motion under R. 39 is by affidavit by default (R. 39.01(1)), with cross-examination available under R. 39.02 and oral evidence by leave under R. 39.01(4). Hearsay is permitted on information and belief for non-contentious facts.

⚠ EXAM TIP - Q5(j) IS TRUE - AFFIDAVIT IS THE DEFAULT

Sample exam Q5(j) states: 'Evidence on motions is typically brought by way of affidavit.' This is TRUE. R. 39.01(1) is the express provision. Be ready to identify R. 39.02 cross-examination and R. 39.01(4) oral-evidence-by-leave as the related procedures.

Template 22 - Interlocutory Injunction - RJR-MacDonald Three-Part Test

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a party seeks an interlocutory injunction (mandatory or prohibitive) - to restrain conduct or to compel action pending trial. The test is the three-part RJR-MacDonald framework.

ISSUE

The issue is whether [APPLICANT] should be granted an interlocutory injunction restraining [RESPONDENT] from [CONDUCT] pending trial, applying the three-part test from RJR-MacDonald Inc. v Canada (Attorney General), [1994] 1 S.C.R. 311.

RULE

Statutory power (CJA s. 101). The Superior Court of Justice may grant an interlocutory injunction or mandatory order where it appears to a judge of the court to be just or convenient to do so.

Three-part test - RJR-MacDonald. (1) Is there a serious issue to be tried? (low threshold - neither vexatious nor frivolous; for prohibitive injunctions). (2) Will the applicant suffer irreparable harm if the injunction is refused? (harm not quantifiable in damages; not adequately compensable). (3) Does the balance of convenience favour the applicant? (which party will suffer the greater harm from the

granting or refusal of the injunction).

Higher threshold for mandatory injunctions - R. v Canadian Broadcasting Corp., 2018 SCC 5.

A mandatory interlocutory injunction (compelling action) requires a STRONG PRIMA FACIE CASE at stage 1, not the lower 'serious issue' threshold.

Public interest at stage 3. Where government action is enjoined, public interest is given significant weight at the balance-of-convenience stage (RJR-MacDonald paras 75–80).

Subsequent application - Google Inc. v Equustek Solutions Inc., 2017 SCC 34. RJR-MacDonald three-part test confirmed; Court granted a worldwide de-indexing injunction against a non-party search engine.

Undertaking as to damages (R. 40.03). The applicant generally must give an undertaking to abide by any order as to damages that may be made if the injunction was granted improvidently.

APPLICATION FRAMEWORK

STEP 1: Identify the type of injunction sought

Prohibitive (restraining conduct) or mandatory (compelling conduct). Mandatory triggers the higher 'strong prima facie case' threshold under CBC.

STEP 2: Stage 1 - serious issue / strong prima facie case

[APPLICANT]'s claim raises [a serious issue / a strong prima facie case] because [factual basis]. The threshold for a prohibitive injunction is low - anything not vexatious or frivolous suffices. For a mandatory injunction, [APPLICANT] must show a strong case on the merits.

STEP 3: Stage 2 - irreparable harm

Without an injunction, [APPLICANT] will suffer harm not adequately compensable in damages - for example, [permanent loss of market share / unrecoverable disclosure of trade secrets / harm to reputation / dissipation of judgment-proof assets].

STEP 4: Stage 3 - balance of convenience

The balance of convenience favours [APPLICANT] because [analysis]. If the conduct enjoined affects the public interest, that interest is weighed at this stage.

STEP 5: Undertaking and terms

[APPLICANT] gives an undertaking as to damages under R. 40.03 (waivable in special cases); the order may include terms preserving status quo and providing for review.

CONCLUSION

Applying the three-part RJR-MacDonald test, [APPLICANT] [should / should not] be granted an interlocutory injunction. The applicant has shown [serious issue / strong prima facie case], irreparable harm, and that the balance of convenience favours [APPLICANT]. The order is conditional on an undertaking as to damages under R. 40.03.

⚠ EXAM TIP - MANDATORY INJUNCTION = STRONG PRIMA FACIE CASE - NOT 'SERIOUS ISSUE'

Since R. v CBC (2018), mandatory interlocutory injunctions require a strong prima facie case at stage 1, not the lower 'serious issue' standard. Always identify whether the injunction sought is prohibitive (status quo) or mandatory (compelling action) - the threshold differs. State both the RJR-MacDonald baseline and the CBC modification.

Template 23 - Mareva Injunction & Anton Piller Order - Extraordinary Pre-Judgment Relief

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question describes (a) a defendant who may dissipate or remove assets to defeat a judgment (Mareva injunction), or (b) evidence that the defendant may destroy or conceal documents or property crucial to the proceeding (Anton Piller order). Both are without-notice (ex parte) extraordinary remedies.

ISSUE

The issue is whether [APPLICANT] should be granted [a Mareva injunction restraining dissipation of assets / an Anton Piller order permitting search and seizure] in respect of [RESPONDENT] pending trial.

RULE

Mareva injunction - Aetna Financial Services Ltd. v Feigelman, [1985] 1 S.C.R. 2; Chitel v Rothbart (1982), 39 O.R. (2d) 513 (C.A.). A pre-judgment freezing order restraining a defendant from dealing with assets pending trial. Test: (1) strong prima facie case on the merits; (2) defendant has assets within the jurisdiction; (3) real risk of dissipation or removal of those assets; (4) balance of convenience favours grant.

Anton Piller order - Anton Piller KG v Manufacturing Processes Ltd., [1976] Ch 55 (CA); Celanese Canada Inc. v Murray Demolition Corp., 2006 SCC 36. A pre-trial order permitting the applicant's representatives to enter the respondent's premises to inspect, copy, or remove documents and other items relevant to the proceeding. Test: (1) strong prima facie case; (2) potential or actual damage very serious; (3) clear evidence respondent has incriminating documents/items in possession; (4) real possibility respondent may destroy such material before discovery.

Procedural safeguards. Both orders are obtained without notice (R. 37.07(2)). The applicant has duty of full and frank disclosure on the ex parte application. Independent supervising solicitor is appointed for Anton Piller execution. Order is reviewable on the return date - typically within seven days.

Undertaking as to damages. Required in every Mareva and Anton Piller - applicant undertakes to compensate respondent if order is wrongly granted.

APPLICATION FRAMEWORK

STEP 1: Identify which order is required

[Asset dissipation] → Mareva injunction. [Document or evidence destruction] → Anton Piller order. The two are separate remedies; both can issue together where appropriate.

STEP 2: Mareva - apply the four-part test

(1) Strong prima facie case; (2) Ontario assets identified; (3) real risk of dissipation (not mere fear - evidence required: e.g., transfers offshore, history of asset shielding, refusal to disclose assets); (4) balance of convenience.

STEP 3: Anton Piller - apply the four-part Celanese test

(1) Strong prima facie case; (2) very serious potential or actual damage; (3) clear evidence respondent has the documents/items; (4) real possibility of destruction. The test is rigorous - Anton Piller is described as 'one of the most extreme remedies known to civil procedure'.

STEP 4: Procedural safeguards

Without notice (R. 37.07(2)). Full and frank disclosure required on the ex parte application - failure leads to discharge of the order. Independent supervising solicitor appointed for Anton Piller

execution (Celanese). Undertaking as to damages required. Return date for review (typically 7 days).

CONCLUSION

[APPLICANT] [should / should not] be granted a [Mareva injunction / Anton Piller order]. If granted, the order is subject to undertaking as to damages, returnable for review, and (in Anton Piller cases) executed under supervision of an independent solicitor.

⚠ EXAM TIP - BOTH ARE EXTRAORDINARY - STATE THE FOUR-PART TEST AND THE SAFEGUARDS

Mareva and Anton Piller are conceptually paired but procedurally distinct. Mareva freezes assets; Anton Piller authorizes entry and seizure of evidence. Both are without notice; both require strong prima facie case; both require full and frank disclosure on the ex parte application. The independent supervising solicitor requirement (Celanese 2006) is unique to Anton Piller. Always identify which remedy the facts call for and apply the right test.

PART G

DISCOVERY (HIGHEST-TESTED)

Five templates covering the most heavily tested cluster on the NCA Civil Procedure exam. Sample exam Q3 was a full 20-mark discovery question. Master T24 (affidavit of documents), T25 (oral examinations), and T26 (privilege) - these are the three highest-yield templates in this entire bundle.

Template 24 - Documentary Discovery - Affidavit of Documents (R. 30)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks how documentary evidence is exchanged before trial - what each party must list, what is privileged, what is no longer in possession, and the timing. Sample exam Q3 explicitly asks for the documentary phase of discovery.

ISSUE

The issue is the process by which [PLAINTIFF] and [DEFENDANT] are required to exchange documentary evidence under R. 30, including the form, content, and timing of the affidavit of documents, and what may be excluded from production.

RULE

Duty to disclose (R. 30.02). A party shall disclose every document relevant to any matter in issue in an action that is or has been in the party's possession, control, or power.

Affidavit of documents (R. 30.03). Each party serves on every other party an affidavit of documents (Form 30A for individuals; Form 30B for parties under disability and corporations). The affidavit must list and describe documents in three Schedules:

Schedule A. Documents that are or have been in the party's possession, control, or power that the party does not object to producing - produced for inspection.

Schedule B. Documents that are or have been in the party's possession, control, or power for which privilege is claimed - described in a manner sufficient to identify them, with the grounds of the claim of privilege stated.

Schedule C. Documents that were formerly but are no longer in the party's possession, control, or power - describe what they were and what became of them.

Timing (R. 30.03(1)). Affidavit of documents shall be served within ten days after the close of pleadings, unless the parties' discovery plan (R. 29.1) provides otherwise.

Continuing obligation (R. 30.07). Where a document is found subsequently or comes into a party's possession after delivery of the affidavit, the party shall forthwith disclose it.

Sanctions for failure to disclose (R. 30.08). A party who fails to disclose a document or to produce it for inspection may not use it at trial except with leave; the court may also dismiss the action, strike the defence, order costs, or impose other sanctions.

APPLICATION FRAMEWORK

STEP 1: Determine the scope of relevance

Under R. 30.02, every document relevant to any matter in issue is disclosable. Relevance is broad - a document that may directly or indirectly enable the party to advance their case, or damage the opposing case, or fairly lead to a chain of inquiry.

STEP 2: Identify documents in the three categories

Schedule A - documents to be produced for inspection. Schedule B - privileged documents (solicitor-client, litigation, settlement - see T26). Schedule C - formerly possessed documents, e.g., destroyed in regular course, returned to client, lost.

STEP 3: Prepare the affidavit of documents

Form 30A for individuals; Form 30B for corporations and parties under disability. The deponent swears that the affidavit is a complete listing - failure to disclose subsequently discovered documents is a breach of R. 30.07 with R. 30.08 consequences.

STEP 4: Service and timing

Serve within 10 days after close of pleadings (R. 30.03(1)), or in accordance with the discovery plan (R. 29.1). Production of Schedule A documents follows on demand under R. 30.04.

STEP 5: Continuing obligations and sanctions

R. 30.07 - disclose forthwith on subsequent discovery. R. 30.08 - sanctions include exclusion of the document at trial, strike of pleading, costs.

CONCLUSION

Each party serves an affidavit of documents (Form 30A/30B) under R. 30.03 within 10 days after close of pleadings, listing documents in Schedules A (produced), B (privileged), and C (formerly possessed). Production of Schedule A follows under R. 30.04. The duty is continuing under R. 30.07; failures attract R. 30.08 sanctions.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q3: 'process by which all relevant evidence is exchanged' - answer combines T24 (documentary, R. 30), T25 (oral, R. 31), T26 (privilege).
2. Email chain showing internal corporate decision-making - Schedule A unless privileged.
3. Email between client and external counsel concerning the litigation - Schedule B (solicitor-client privilege).
4. Document destroyed in regular course of business under records retention policy - Schedule C with explanation.
5. Document discovered after affidavit served - disclose forthwith under R. 30.07.
6. Failure to list a key document - R. 30.08(2): cannot use the document at trial except with leave.

⚠ EXAM TIP - THREE SCHEDULES - A PRODUCED, B PRIVILEGED, C GONE - IS THE MNEMONIC

Mastering Schedule A (produced), Schedule B (privileged, but must be described and grounds stated), and Schedule C (formerly possessed, with explanation) is essential. Q3 of the sample exam expects the candidate to walk through all three. Privileged documents are NOT exempt from listing - they are listed in Schedule B with the privilege ground stated; only their CONTENT is protected from production.

Template 25 - Examinations for Discovery - R. 31 (Oral Discovery)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks about oral examinations for discovery - who can be examined, time limits, scope, sanctions for refusal. Sample exam Q5(c) tests this directly: True North examines Kumar (Acme); can True North also examine any other employee of Acme without leave? Answer:

NO.

ISSUE

The issue is who may be examined for discovery under R. 31, the time limits, scope, and consequences of refusing to answer.

RULE

Right to examine - parties adverse in interest (R. 31.03(1)). A party to an action may examine for discovery any other party adverse in interest, once.

Examination of a corporation (R. 31.03(2)). Where the party to be examined is a corporation, the examining party may examine any officer, director, or employee on behalf of the corporation. The examining party chooses the representative; the corporation may move for substitution if the chosen person lacks knowledge.

Multiple persons / same party (R. 31.03(2) and (4)). Generally only one person on behalf of a corporate party. Leave to examine more than one person may be granted where (a) satisfactory answers cannot be obtained from one person without undue expense and inconvenience, AND (b) examination of more than one would likely expedite the conduct of the action.

Non-party examinations require leave (R. 31.10). The court may grant leave to examine any person who there is reason to believe has information relevant to a material issue, OTHER THAN an expert engaged by or on behalf of a party. Leave shall not be granted unless: (a) the moving party has been unable to obtain the information from persons it is entitled to examine; (b) it would be unfair to require the moving party to proceed to trial without the opportunity; AND (c) the examination will not unduly delay the trial, entail unreasonable expense, or be unfair to the proposed examinee. Leading authority: Famous Players Development Corp. v Central Capital Corp. (1991) 6 O.R. (3d) 765 (Div. Ct.) - there must be an actual or constructive refusal to obtain the information; Rupani v Willett, 2023 ONSC 3743 - applied.

Time limit (R. 31.05.1). No party may, in conducting oral examinations for discovery in an action, exceed seven hours of examination, regardless of the number of parties or persons being examined, except with consent or leave. Under simplified procedure, R. 76.04(2) caps total at three hours.

Scope (R. 31.06). A person examined shall answer any proper question relating to any matter in issue, including the names and addresses of persons who might reasonably be expected to have knowledge, the existence of any document, and the findings, opinions, and conclusions of an expert engaged by or on behalf of the party (subject to privilege).

Refusals (R. 34 and R. 31.07). A person who refuses to answer a proper question may be compelled by court order; refusal that continues at trial may result in striking of pleadings or other sanctions.

Use at trial (R. 31.11). Examination transcripts may be read in or used to impeach a witness.

APPLICATION FRAMEWORK

STEP 1: Identify the persons proposed to be examined

Each party adverse in interest has the right to be examined ONCE under R. 31.03(1). For a corporate party, the examining party chooses ONE representative under R. 31.03(2). For non-parties, leave is required under R. 31.10.

STEP 2: Apply the time limits

Default seven hours per examining party (R. 31.05.1); three hours under R. 76 simplified procedure (R. 76.04(2)). Time can be extended on consent or by court order - R. 31.05.1(2) lists factors.

STEP 3: Apply the scope rules

All proper questions relating to matters in issue under R. 31.06. Includes identity of persons with knowledge (R. 31.06(2)), existence of documents (R. 31.06(3)), expert findings (R. 31.06(3) - subject to privilege).

STEP 4: Address refusals

Refusals at examination are noted by the court reporter. Examining party may bring a motion under R. 34.15 to compel answers. Persistent refusals may result in pleadings being struck (R. 31.07).

STEP 5: Use at trial

Under R. 31.11, the transcript may be (a) read in by the examining party as evidence; (b) used to impeach the witness's trial evidence; (c) used to refresh memory.

CONCLUSION

Each party adverse in interest may be examined once under R. 31.03(1); a corporate party is examined through one chosen representative under R. 31.03(2); non-parties only with leave under R. 31.10. The default time limit is seven hours per examining party (R. 31.05.1); three hours under R. 76.04(2). Refusals are governed by R. 34.15.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q5(c): True North has examined Kumar (officer of Acme). Can True North also examine other Acme employees WITHOUT bringing a motion or without consent? FALSE. R. 31.03(2) entitles the examining party to ONE representative; further examinations require leave under R. 31.03(2) showing inability to obtain information from one person and that further examinations will expedite.
2. Plaintiff in MVA case has memory loss; defendant wants to examine plaintiff's spouse (non-party) who witnessed the accident. R. 31.10 - granted in *Ghanim v Ali*, 2018 ONSC 407; refused in *Rupani v Willett*, 2023 ONSC 3743 (no actual or constructive refusal by plaintiff at her own discovery).
3. Defendant wants to examine plaintiff's expert before trial. R. 31.10(1) - experts excluded; cannot be examined for discovery.
4. Examination running long; one party at the 7-hour mark wants more time. R. 31.05.1(2) - court considers complexity, cooperation, conduct.
5. Witness about to leave the country and won't be at trial. R. 36.01(2) - examination of witness before trial; substantive examination intended to mirror trial testimony.

⚠ EXAM TIP - Q5(c) - ONE REP PER CORPORATION; NON-PARTIES NEED LEAVE

The sample exam Q5(c) trap is multi-layered: (1) only ONE representative per corporate party under R. 31.03(2) - additional examinations require leave; (2) non-parties are not examinable without leave under R. 31.10. The statement that True North can examine 'any other employee of Acme' WITHOUT motion or consent is FALSE.

Template 26 - Privilege & Deemed Undertaking - R. 30.1 and Common Law

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question raises whether documents or information may be withheld from production or examination on grounds of privilege. The big four: solicitor-client privilege (Pritchard), litigation privilege (Blank), settlement privilege (Union Carbide; Lizotte), and the public-safety exception (Smith v Jones).

ISSUE

The issue is whether [DOCUMENT / COMMUNICATION] is protected from production or use by [solicitor-client privilege / litigation privilege / settlement privilege / deemed undertaking rule].

RULE

Solicitor-client privilege. Confidential communications between a lawyer and client made for the purpose of seeking or giving legal advice. Class privilege - quasi-substantive right, not a mere rule of evidence: *Pritchard v Ontario (Human Rights Commission)*, 2004 SCC 31. The privilege attaches at the moment of communication and is in principle permanent. Breached only by clear, narrow exceptions (e.g., crime/fraud exception; statutory abrogation by clear and unequivocal language: *Canada (Privacy Commissioner) v Blood Tribe Department of Health*, 2008 SCC 44).

Litigation privilege. Communications and documents created for the dominant purpose of contemplated or actual litigation. Distinct purpose from solicitor-client: protects the adversarial process, not the lawyer-client relationship: *Blank v Canada (Minister of Justice)*, 2006 SCC 39. Ends with the litigation that gave rise to it (cf. solicitor-client privilege, which is permanent).

Settlement privilege. Communications made in the course of bona fide settlement negotiations are inadmissible. Class privilege: *Lizotte v Aviva Insurance Co. of Canada*, 2016 SCC 52. Mediation communications: *Union Carbide Canada Inc. v Bombardier Inc.*, 2014 SCC 35 - settlement privilege applies unless parties contract out, and even contracts must clearly displace it.

Public safety exception - *Smith v Jones*, [1999] 1 S.C.R. 455. Solicitor-client privilege may be set aside where there is a clear, serious, and imminent threat to identifiable persons or groups.

Deemed undertaking rule (R. 30.1.01). All evidence obtained through the discovery process - affidavits of documents, productions, oral examinations, written interrogatories, court-ordered medical exams - is subject to a deemed undertaking that it will not be used by the receiving party for any purpose other than the proceeding in which it is obtained. Exceptions: with consent, for impeachment in another proceeding, or where required by law.

Self-defence to wrongful disclosure. A party may use discovery answers in defence of a contempt motion or similar proceeding (R. 30.1.01(7)).

Wigmore four-criteria test. Where no class privilege applies, individual case-by-case privilege may be established under the Wigmore criteria (e.g., *A.M. v Ryan*, [1997] 1 S.C.R. 157).

APPLICATION FRAMEWORK

STEP 1: Identify the type of privilege

Solicitor-client (legal advice), litigation (dominant purpose litigation), settlement (negotiation communications), or other case-by-case (Wigmore).

STEP 2: Apply the test

[Solicitor-client] - *Pritchard*: confidential, between lawyer and client, for purpose of legal advice.

[Litigation] - *Blank*: dominant purpose contemplated or actual litigation. [Settlement] - *Lizotte* / *Union Carbide*: class privilege; bona fide settlement context.

STEP 3: Address exceptions

Solicitor-client: crime/fraud exception; clear statutory abrogation (*Blood Tribe*). Litigation: ends with the litigation. Settlement: exceptions where necessary to prove existence/scope of agreement. *Smith v Jones*: public safety override.

STEP 4: Apply the deemed undertaking

Information obtained through discovery is subject to R. 30.1.01 - used only in this proceeding. Use elsewhere requires consent, court order, or statutory authority.

CONCLUSION

[DOCUMENT / COMMUNICATION] is [protected by solicitor-client / litigation / settlement] privilege under [authority]. The deemed undertaking under R. 30.1.01 limits use of all discovery material to this proceeding only.

⚠ EXAM TIP - FOUR PRIVILEGES + DEEMED UNDERTAKING - STATE THE LEADING CASE FOR EACH

On a discovery question, name all four common-law privileges and R. 30.1.01: Pritchard 2004 SCC 31 (solicitor-client), Blank 2006 SCC 39 (litigation), Lizotte 2016 SCC 52 / Union Carbide 2014 SCC 35 (settlement), Smith v Jones [1999] 1 SCR 455 (public safety override), and R. 30.1.01 (deemed undertaking). One sentence per privilege gains marks.

Template 27 - E-Discovery, Discovery Plan & Proportionality - RR. 29.1, 29.2

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question raises issues of (a) electronic documents, (b) discovery plans for managing voluminous discovery, or (c) proportionality limitations on discovery. Sample exam Q5(e) tests proportionality directly: 'Proportionality is designed to improve civil justice.' That is TRUE.

ISSUE

The issue is the framework for managing discovery proportionately under R. 29.1 (discovery plan) and R. 29.2 (proportionality), with attention to electronic documents.

RULE

Discovery plan (R. 29.1.03). Parties to an action shall agree to a discovery plan within 60 days after close of pleadings, unless the action is under simplified procedure. The plan addresses: (a) intended scope of documentary discovery; (b) dates for service of affidavits of documents; (c) information about timing, costs, and conduct of examinations; (d) names of persons intended to be examined; (e) any other information intended to result in the expeditious and cost-effective completion of discovery proportionate to the importance and complexity of the action.

Sedona Canada Principles. R. 29.1.03(4): discovery plan shall be informed by the Sedona Canada Principles for managing electronically stored information.

Proportionality (R. 29.2.03). In making a determination as to whether a party or other person must answer a question or produce a document, the court shall consider whether (a) the time required for the party to answer or produce would be unreasonable; (b) the expense would be unjustified; (c) it would cause an undue prejudice to the responding party; (d) it would unduly interfere with the orderly progress of the action; OR (e) the information or document is readily available to the requesting party from another source.

Failure to agree to discovery plan (R. 29.1.05). If parties have failed to agree to or update a discovery plan, the court may refuse to grant any relief or to award any costs.

Definition of 'document' and 'electronic' (R. 1.03(1)). 'Document' includes data and information in electronic form. The full body of e-discovery rules applies.

APPLICATION FRAMEWORK

STEP 1: Confirm a discovery plan is required

Discovery plans are required in actions other than simplified procedure (R. 29.1.03(1)). Under simplified procedure, the truncated process is governed by R. 76.

STEP 2: Develop the discovery plan

Parties agree on scope, timing, costs, and methods. The plan should reflect Sedona Canada Principles for ESI: identification, preservation, collection, processing, review, production. Cost-shifting may be addressed.

STEP 3: Apply proportionality at every disputed step

When a party objects to producing a document or answering a question, the court applies R. 29.2.03 - time, expense, prejudice, interference, alternative availability.

STEP 4: Sanctions for failure

R. 29.1.05: failure to agree to or update a discovery plan can result in denial of relief or costs.

CONCLUSION

Discovery in actions outside simplified procedure is managed by a discovery plan under R. 29.1.03, informed by the Sedona Canada Principles for ESI. Disputes are resolved through the proportionality lens of R. 29.2.03. Failure to agree to a plan can result in sanctions under R. 29.1.05.

⚠ EXAM TIP - Q5(e) IS TRUE - PROPORTIONALITY IS BAKED INTO RR. 1.04(1.1), 29.1, 29.2

Sample exam Q5(e) - 'Proportionality is designed to improve civil justice' - is TRUE. The principle appears in R. 1.04(1.1) (governing principle) and is operationalized in R. 29.1 (discovery plan) and R. 29.2 (limits on discovery). *Hryniak v Mauldin* (2014 SCC 87) elevated proportionality to a constitutional principle of civil procedure.

Template 28 - Refusals at Discovery - Compelling Answers (R. 34.15)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a witness or party refuses to answer a question at oral discovery, refuses to produce a document, or fails to attend. Procedural framework: R. 34 (procedure on examinations) and R. 31.07 (consequences of refusal).

ISSUE

The issue is the procedure for compelling [WITNESS] to answer questions or produce documents refused at discovery, and the consequences of continued refusal.

RULE

Refusals procedure (R. 34.15). Where a person fails or refuses to answer a proper question or to produce a document, or where the question is objected to, the matter may be brought before the court by motion to (a) compel an answer or production; (b) decide the propriety of the question; (c) impose other appropriate sanctions.

Consequences of refusal (R. 31.07). Where a party fails or refuses to answer a proper question, the court may dismiss the action or strike out the defence, exclude the evidence at trial, or impose costs.

Privilege objections - basis must be stated. A claim of privilege must specify the type (solicitor-client, litigation, settlement, etc.) and the basis. Bare refusal without stated grounds is insufficient.

Undertakings. Where a witness undertakes to provide information after discovery (e.g., produce a document, look up a fact), the undertaking is enforceable; failure may result in sanctions.

APPLICATION FRAMEWORK

STEP 1: Categorize the refusal

(a) Refusal to answer - improper if the question is proper under R. 31.06; (b) refusal to produce - depends on whether document is privileged; (c) failure to attend - addressed under R. 34.14.

STEP 2: Bring a motion under R. 34.15

After the refusals are recorded by the court reporter and a refusals chart is prepared, the moving party brings a motion (typically before an Associate Judge) to compel answers, decide propriety, or impose sanctions.

STEP 3: Apply privilege analysis where claimed

If privilege is claimed, the court applies T26 - solicitor-client, litigation, settlement, or other. The court may require an in-camera review of the document to assess privilege.

STEP 4: Enforce sanctions for continued refusal

Under R. 31.07 - strike pleading, dismiss action, exclude evidence, costs. The R. 31.07 sanction applies even if a R. 34.15 order is not first sought, where refusals are persistent.

CONCLUSION

[MOVING PARTY] should bring a R. 34.15 motion to compel [WITNESS] to answer the disputed questions or produce the documents. If the refusal is based on a privilege claim, the court applies T26. Continuing refusal triggers R. 31.07 sanctions including strike of pleadings.

⚠ EXAM TIP - MOTION FIRST - STRIKING IS A LAST RESORT

Courts will not strike pleadings under R. 31.07 absent a clear, deliberate refusal to comply with a prior order under R. 34.15. The path is: refusal → R. 34.15 motion → court order → continued refusal → R. 31.07 sanction. State the procedural sequence rather than jumping to the sanction.

PART H

DISPOSITION WITHOUT FULL TRIAL

Four templates covering the methods of resolving an action without a full trial: summary judgment under R. 20 (T29); R. 21 determination of issue (T30); default proceedings under R. 19 (T31); and the residual mechanisms - R. 2.1 (frivolous/vexatious) and R. 48.14 (dismissal for delay) (T32). Sample exam Q4 was a 20-mark adversarial-non-consensual-disposition question that asked the candidate to map all of these.

Template 29 - Summary Judgment - R. 20 and the Hryniak Culture Shift

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a party seeks judgment without a trial on the basis that there is no genuine issue requiring a trial. Sample exam Q4 explicitly asks for the adversarial non-consensual disposition options - R. 20 is the most prominent. The governing case is *Hryniak v Mauldin*, 2014 SCC 87.

ISSUE

The issue is whether [MOVING PARTY] should be granted summary judgment under R. 20 on the basis that there is no genuine issue requiring a trial, applying the framework in *Hryniak v Mauldin*, 2014 SCC 87.

RULE

Test (R. 20.04(2)). The court shall grant summary judgment if it is satisfied that (a) there is no genuine issue requiring a trial with respect to a claim or defence; or (b) the parties agree to have all or part of the claim determined by summary judgment and the court is satisfied that it is appropriate.

Enhanced fact-finding powers (R. 20.04(2.1)). In determining whether there is a genuine issue requiring a trial, the court shall consider the evidence submitted by the parties, and may exercise the following powers, unless it is in the interest of justice for them to be exercised only at a trial: (1) weighing the evidence; (2) evaluating the credibility of a deponent; (3) drawing any reasonable inference from the evidence.

Mini-trial (R. 20.04(2.2)). The court may, for the purposes of exercising any of the powers in subrule (2.1), order that oral evidence be presented by one or more parties, with or without time limits.

***Hryniak v Mauldin*, 2014 SCC 87 (Karakatsanis J., unanimous) - the 'culture shift'.** The Court mandated a culture shift away from a default of full conventional trial. Two-stage analysis (paras 49–50): (1) the motion judge first considers whether there is a genuine issue requiring a trial based on the record; (2) if there appears to be a genuine issue, the motion judge then considers whether the need for a trial can be avoided by exercising the enhanced powers under R. 20.04(2.1) and (2.2).

'Genuine issue requiring a trial'. The question is not whether the issue is genuine; the question is whether a TRIAL IS REQUIRED. Disposition can be fair and just on a paper record, or with limited oral evidence under (2.2), without a full trial.

Cost consequences (R. 20.06). Where a moving party fails on a summary judgment motion, the court may award the responding party costs on a substantial indemnity scale unless the court is satisfied that the motion was reasonable.

Subsequent guidance - *Moffitt v TD Canada Trust*, 2023 ONCA 349; *Royal Bank of Canada v 1643937 Ontario Inc.*, 2021 ONCA 98. Caution against over-aggressive use of partial summary judgment where the issues are intertwined.

APPLICATION FRAMEWORK

STEP 1: Identify the motion and the basis

[MOVING PARTY] moves for summary judgment under R. 20.01 / R. 20.02. The basis is that there is no genuine issue requiring a trial with respect to [CLAIM / DEFENCE / ISSUE].

STEP 2: Apply Hryniak Stage 1

On the record before the court - affidavits, transcripts of cross-examination on the affidavits, documents - is there a genuine issue requiring a trial? If the record clearly demonstrates that [MOVING PARTY] is entitled to judgment, granted at this stage.

STEP 3: Apply Hryniak Stage 2 - enhanced powers

If there appears to be a genuine issue, the court considers whether it can fairly and justly resolve the issue by exercising the enhanced powers under R. 20.04(2.1) - weighing evidence, assessing credibility, drawing inferences - possibly with limited oral evidence under (2.2). The 'interest of justice' qualifier preserves cases that genuinely require full trial.

STEP 4: Address the policy of proportionate adjudication

Per Hryniak, summary judgment is the proportionate procedure where it can fairly and justly determine the issues without trial. Conventional trial is no longer the default.

STEP 5: Cost consequences

Under R. 20.06, an unsuccessful moving party faces substantial indemnity costs unless the motion was reasonable. Successful moving parties typically receive costs in the cause or the action.

CONCLUSION

Applying Hryniak, [MOVING PARTY] [is / is not] entitled to summary judgment under R. 20.04(2). Where granted, the court applies the enhanced powers under R. 20.04(2.1), with or without a mini-trial under R. 20.04(2.2), to dispose of the issue without a conventional trial.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q4 (True North recording from disgruntled ex-employee about faulty refrigeration): summary judgment plausible if the recording is admissible and uncontroverted, but credibility of the disgruntled employee will likely require trial. Proper answer maps R. 20 (lead option) + R. 21 (legal sufficiency of pleading) + R. 19 (default if defendant has not defended) + R. 25.11 (striking).
2. Pure question of law on undisputed facts → strong R. 20 case (Hryniak Stage 1 disposes).
3. Documentary fraud case where corporate records resolve the issue → stage 2 may suffice with limited oral evidence under R. 20.04(2.2).
4. Credibility dispute between two witnesses → typically requires trial, though Hryniak permits credibility findings on a paper record where appropriate.
5. Partial summary judgment on intertwined issues → caution per Baywood Homes 2014 ONCA 450; Moffitt 2023 ONCA 349.

⚠ EXAM TIP - STATE THE TWO-STAGE TEST AND THE INTEREST-OF-JUSTICE QUALIFIER

Hryniak's two-stage analysis is the entire R. 20 answer: (1) Stage 1 record-only review; (2) Stage 2 enhanced powers + mini-trial. Always cite the rule numbers - R. 20.04(2.1) for enhanced powers, R. 20.04(2.2) for mini-trial - and the case (Hryniak v Mauldin, 2014 SCC 87). The 'interest of justice' qualifier in R. 20.04(2.1) is what preserves the trial when truly needed.

Template 30 - Determination of an Issue Before Trial - R. 21**IRAC TEMPLATE**

USE THIS TEMPLATE WHEN

Use whenever a party seeks to dispose of a claim or defence on the basis that (a) the pleading discloses no reasonable cause of action or defence, or (b) a question of law alone, raised by the pleading, can be determined before trial. R. 21 is distinct from R. 20 (factual sufficiency) and from R. 25.11 (procedural impropriety).

ISSUE

The issue is whether [PLEADING / ISSUE] should be determined under R. 21 on the ground that [it discloses no reasonable cause of action or defence / a question of law can dispose of the proceeding].

RULE

Determination of question of law (R. 21.01(1)(a)). A party may move for the determination, before trial, of a question of law raised by a pleading in an action where the determination may dispose of all or part of the action, substantially shorten the trial, or result in a substantial saving of costs.

No reasonable cause of action or defence (R. 21.01(1)(b)). A party may move to strike out a pleading on the ground that it discloses no reasonable cause of action or defence. No evidence is admissible (R. 21.01(2)(b)) - decided on the face of the pleading alone.

Other grounds (R. 21.01(3)). A defendant may move to have an action stayed or dismissed on the ground that (a) the court has no jurisdiction; (b) the plaintiff is without legal capacity; (c) another proceeding is pending; or (d) the action is frivolous or vexatious or otherwise an abuse of process.

'Plain and obvious' standard. A pleading is struck under R. 21.01(1)(b) only where it is plain and obvious that the claim cannot succeed: *Hunt v Carey Canada Inc.*, [1990] 2 S.C.R. 959; *R. v Imperial Tobacco Canada Ltd.*, 2011 SCC 42.

Generally with leave to amend. The court generally grants leave to amend a deficient pleading unless the defect is incurable.

APPLICATION FRAMEWORK

STEP 1: Identify the basis under R. 21

(a) Pure question of law - R. 21.01(1)(a). (b) No reasonable cause of action / defence - R. 21.01(1)(b). (c) Jurisdiction / capacity / another proceeding / abuse - R. 21.01(3).

STEP 2: Apply the 'plain and obvious' standard for R. 21.01(1)(b)

The pleading is read generously, with all material facts taken as true. The motion succeeds only if it is plain and obvious that the claim cannot succeed. Novel claims that are not certain to fail should generally proceed.

STEP 3: For R. 21.01(1)(a), confirm a pure question of law

The question must be raised by the pleading and capable of determination on the assumed facts. Mixed questions of fact and law are not appropriate for R. 21.01(1)(a).

STEP 4: Consider leave to amend

Even if the pleading is struck, R. 26 permits amendment with leave. Leave is generally granted unless the defect is incurable.

CONCLUSION

[PLEADING / ISSUE] [should / should not] be determined under R. 21.01(1)([a]/[b]) / R. 21.01(3). The 'plain and obvious' standard governs, and leave to amend is available where the defect is curable.

⚠ EXAM TIP - R. 20 vs R. 21 vs R. 25.11 - DIFFERENT PURPOSES

R. 20 (summary judgment) - factual sufficiency; evidence required. R. 21 - legal sufficiency / pure question of law; pleading only (R. 21.01(2)(b)). R. 25.11 - procedural impropriety (scandalous, vexatious, abuse). When asked 'how do I dispose of this?', identify which gateway: factual issue → R. 20; legal sufficiency → R. 21; procedural defect → R. 25.11.

Template 31 - Default Proceedings - R. 19

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a defendant fails to deliver a Statement of Defence within the time prescribed (20 / 40 / 60 days under R. 18.01, plus 10 days for Notice of Intent to Defend under R. 18.02). Default has procedural and substantive consequences under R. 19.

ISSUE

The issue is the procedure by which [PLAINTIFF] may obtain default judgment against [DEFENDANT] who has failed to deliver a Statement of Defence within the time prescribed by R. 18.01.

RULE

Noting in default (R. 19.01). Where a defendant has failed to deliver a Statement of Defence within the prescribed time, the plaintiff may, on filing proof of service of the Statement of Claim, require the registrar to note the defendant in default.

Effect of being noted in default (R. 19.02). A defendant noted in default is deemed to admit the truth of all allegations of fact made in the Statement of Claim, and shall not deliver a Statement of Defence or take any other step in the action other than a motion to set aside the noting in default, except with leave or consent.

Default judgment for liquidated demand (R. 19.04). Where the claim is for a liquidated demand (debt or sum certain), the plaintiff may, on filing proof of service and an affidavit of debt, require the registrar to sign default judgment.

Default judgment for unliquidated demand (R. 19.05). Where the claim is unliquidated (e.g., damages to be assessed), the plaintiff must move for judgment; damages are then assessed at a separate hearing.

Setting aside default (R. 19.03). A defendant who has been noted in default may move to set aside the noting on terms. The court considers whether the motion is brought promptly, whether there is a plausible explanation for the default, and whether there is an arguable defence on the merits (Mountain View Farms Ltd. v McQueen, 2014 ONCA 194).

APPLICATION FRAMEWORK

STEP 1: Confirm time has expired

Default arises if [DEFENDANT] has not delivered a Statement of Defence within 20 days of service in Ontario (R. 18.01(a)) - extended to 30 days if a Notice of Intent to Defend (Form 18B) was delivered under R. 18.02 - or 40 days if served elsewhere in Canada or US, or 60 days if served outside Canada.

STEP 2: Note the defendant in default

[PLAINTIFF] files proof of service of the Statement of Claim and requires the registrar to note [DEFENDANT] in default under R. 19.01. Effect: [DEFENDANT] is deemed to admit all material facts (R. 19.02).

STEP 3: Obtain judgment

Liquidated demand → R. 19.04 default judgment by registrar on affidavit of debt. Unliquidated → R. 19.05 motion for judgment, with damages assessed at hearing.

STEP 4: Anticipate motion to set aside

[DEFENDANT] may move under R. 19.03 to set aside the noting in default. Test (Mountain View Farms 2014 ONCA 194): promptness, plausible explanation, arguable defence on merits. The court has broad discretion.

CONCLUSION

Where [DEFENDANT] has failed to deliver a Statement of Defence within the prescribed time, [PLAINTIFF] notes default under R. 19.01 and obtains default judgment under R. 19.04 (liquidated) or R. 19.05 (unliquidated). [DEFENDANT] may move to set aside under R. 19.03.

⚠ EXAM TIP - 20 / 30 / 40 / 60 - KNOW THE TIME LIMITS COLD

Default depends on the defence period under R. 18.01 - 20 days for Ontario service (or 30 with Notice of Intent), 40 elsewhere in Canada/US, 60 outside. Default is a key option in any 'how do I dispose of this without trial' question (sample exam Q4). State the time limit before noting default.

Template 32 - Frivolous, Vexatious & Delay - R. 2.1 and R. 48.14

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question describes a paper-thin or abusive pleading (R. 2.1) or an action that has stalled and risks administrative dismissal for delay (R. 48.14). These are the residual mechanisms beside R. 19/20/21.

ISSUE

The issue is whether the proceeding should be summarily dismissed under R. 2.1 as frivolous, vexatious, or otherwise an abuse of process, OR is at risk of administrative dismissal for delay under R. 48.14.

RULE

R. 2.1 - paper-based dismissal of frivolous proceedings. R. 2.1.01: the court may, on its own initiative, stay or dismiss a proceeding if the proceeding appears on its face to be frivolous or vexatious or otherwise an abuse of the process of the court. The procedure is paper-based: parties may make written submissions; no oral hearing.

R. 2.1.02 - frivolous motions. Same paper-based mechanism for motions.

Threshold for R. 2.1. Reserved for the clearest of cases. The proceeding must show on its face that it is frivolous or an abuse - typically rambling, conspiracy-themed, or relitigation of decided issues (Scaduto v Law Society of Upper Canada, 2015 ONCA 733).

R. 48.14 - administrative dismissal for delay. Unless the court orders otherwise, the registrar shall dismiss an action for delay if the action has not been set down for trial or terminated by any means within five years after the action was commenced. Status hearing procedure provides notice and opportunity to show cause.

Setting aside dismissal under R. 48.14(7). A party may move to set aside the dismissal; the court considers explanation for delay, prejudice to the defendant, and whether the action is meritorious.

APPLICATION FRAMEWORK

STEP 1: Identify the procedural concern

(a) On-its-face frivolous, vexatious, or abuse - R. 2.1.01. (b) Action stalled for nearing five years from commencement - R. 48.14.

STEP 2: R. 2.1 - apply the high threshold

R. 2.1 is for the clearest of cases. The court reviews the pleading on its face. If frivolousness or abuse is not plain on the face, the court declines to use R. 2.1 and the matter proceeds to a regular motion under R. 21 or R. 25.11.

STEP 3: R. 48.14 - track the timeline

Five years from commencement triggers administrative dismissal unless the action is set down or terminated. Status hearing provides notice. Counsel must respond with a plan to advance the action.

STEP 4: Setting aside R. 48.14 dismissal

Move under R. 48.14(7); affidavit must explain delay, address prejudice, and demonstrate merit. Court considers Reid v Dow Corning Corp. factors.

CONCLUSION

R. 2.1 disposes of clearly frivolous or abusive proceedings on the papers; R. 48.14 administratively dismisses stalled actions five years after commencement. Both have set-aside mechanisms.

⚠ EXAM TIP - R. 2.1 IS NOT R. 21 - DIFFERENT THRESHOLDS, DIFFERENT PROCEDURES

R. 2.1 is reserved for the most extreme cases - visibly frivolous on the face of the pleading. Most attempts to strike a flawed pleading proceed under R. 21.01(1)(b) (no reasonable cause of action) or R. 25.11 (procedural impropriety). Do not invoke R. 2.1 unless the pleading is plainly abusive.

PART I

CASE MANAGEMENT, PRE-TRIAL & ADR

Three templates covering pre-trial conference (T33), mandatory mediation (T34), and arbitration / commercial mediation (T35). Sample exam Q2 (consensual ADR - 20 marks) maps directly to T34 and T35 with a recommendation analysis.

Template 33 - Pre-Trial Conference - R. 50

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever a question asks about pre-trial procedure - settlement opportunities, narrowing of issues, trial readiness. Sample exam Q5(f) tests the role of judges and Associate Judges (formerly Masters) in settlement: 'Masters are involved in settlement discussions, judges are not.' That statement is FALSE - both judges and Associate Judges may conduct pre-trial conferences under R. 50.04.

ISSUE

The issue is the procedure and purpose of the pre-trial conference under R. 50, including who conducts it and what may occur.

RULE

Mandatory pre-trial conference (R. 50.02). Every action set down for trial shall have a pre-trial conference, unless the court orders otherwise.

Purposes (R. 50.01). The pre-trial conference may consider: (a) possibility of settlement; (b) simplification of issues; (c) possibility of obtaining admissions; (d) the question of liability; (e) the amount of damages; (f) the estimated duration of the trial; (g) the advisability of having the court appoint an expert; (h) any other matter that may aid in the disposition of the proceeding.

Who conducts (R. 50.04). A judge or Associate Judge may conduct the pre-trial conference. The pre-trial judge shall not preside at the trial of the action unless the parties consent (R. 50.10).

Confidentiality (R. 50.05). No statement made at the pre-trial conference is admissible at the trial of the action or any other proceeding, except by consent.

Memorandum (R. 50.04(2)). Each party files a pre-trial conference brief setting out facts, issues, settlement position, witness list, and trial estimate.

Power to make orders (R. 50.07). The pre-trial judge may make orders relating to admissions, scheduling, narrowing of issues, and similar matters.

APPLICATION FRAMEWORK

STEP 1: Confirm pre-trial conference is required

Every action set down for trial requires a pre-trial conference under R. 50.02 unless the court orders otherwise.

STEP 2: Identify who may conduct

Either a judge or an Associate Judge - R. 50.04. The pre-trial conference judge may not preside at trial absent consent (R. 50.10).

STEP 3: Prepare and file the pre-trial brief

Filed at least five days before the conference. Includes statement of facts, issues, witness list, settlement position, trial estimate.

STEP 4: Engage the purposes of R. 50.01

Settlement discussion, narrowing of issues, admissions, expert advisability, duration estimate. Statements made at the conference are confidential under R. 50.05.

CONCLUSION

R. 50 requires a pre-trial conference for every action set down for trial. Either a judge or an Associate Judge may conduct it under R. 50.04. The conference promotes settlement, narrows issues, and prepares the action for trial. Confidentiality of statements is preserved by R. 50.05.

⚠ EXAM TIP - Q5(f) IS FALSE - JUDGES AND ASSOCIATE JUDGES BOTH CONDUCT PRE-TRIALS

Sample exam Q5(f) - 'Masters are involved in settlement discussions, judges are not' - is FALSE. R. 50.04 expressly authorizes both judges and Associate Judges (formerly Masters) to conduct pre-trial conferences, the primary court-supervised settlement vehicle. The sample exam predates the Courts of Justice Act, 2021 amendments which renamed Masters as Associate Judges; the substance of the rule is unchanged.

Template 34 - Mandatory Mediation - R. 24.1 (Toronto, Ottawa, Windsor)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question asks about court-annexed ADR or mandatory mediation. Sample exam Q2 (consensual ADR) requires the candidate to identify both rules-based and external ADR options. R. 24.1 is the rules-based mediation regime.

ISSUE

The issue is whether the action is subject to mandatory mediation under R. 24.1, the procedure for mediation, and the consequences of non-compliance.

RULE

Application (R. 24.1.04). R. 24.1 applies to actions in Toronto, Ottawa, and the County of Essex (Windsor) - except (a) family proceedings; (b) actions on the Commercial List; (c) actions placed under case management with a mediation step; (d) actions where the only relief claimed is provisional relief or a declaration; (e) actions specifically excluded by R. 24.1.04(2).

Timing (R. 24.1.09). Mediation shall take place within 180 days after the first defence is filed, unless the court orders otherwise.

Selection of mediator (R. 24.1.08). Parties select a mediator from the roster maintained by the Local Mediation Coordinator, or any other agreed mediator. Default selection by the Coordinator if parties do not agree.

Procedure (R. 24.1.10). Each party files a Statement of Issues at least seven days before the mediation. The mediation is conducted in accordance with the mediator's process.

Confidentiality (R. 24.1.14). All communications at the mediation and the mediator's notes and records are deemed confidential, and no party may use them subsequently except with consent.

Failure to attend (R. 24.1.13). A party who fails to attend may be ordered to pay costs and may face other sanctions.

APPLICATION FRAMEWORK

STEP 1: Confirm R. 24.1 applies

Action proceeds in Toronto, Ottawa, or Windsor; not on Commercial List; not family. R. 24.1.04 specifies coverage and exemptions.

STEP 2: Comply with the 180-day timing

Mediation must be held within 180 days after first defence (R. 24.1.09). Parties may agree to extend, or the court may order extension or postponement.

STEP 3: Select a mediator

Parties may select from the local roster or agree on any mediator (R. 24.1.08). Default selection by the Local Mediation Coordinator if no agreement.

STEP 4: Prepare and file Statements of Issues

Filed at least 7 days before mediation; sets out party's position on issues, settlement views, and key documents.

STEP 5: Confidentiality and consequences of non-compliance

All mediation communications confidential under R. 24.1.14. Failure to attend triggers cost and procedural consequences under R. 24.1.13.

CONCLUSION

If the action is in Toronto, Ottawa, or Windsor and not exempt under R. 24.1.04, mandatory mediation under R. 24.1 applies. Mediation is held within 180 days of first defence; mediator is selected from the roster; Statements of Issues filed seven days in advance. Communications are confidential under R. 24.1.14.

POTENTIAL EXAM SCENARIOS

1. Sample exam Q2 (Acme - consensual ADR options): R. 24.1 only applies if the action is in Toronto, Ottawa, or Windsor. If outside those locations, mediation is not mandatory but can be done by agreement.
2. Toronto-based commercial dispute → R. 24.1 applies (unless on Commercial List, which has its own mediation process).
3. Windsor MVA action → R. 24.1 applies; 180-day deadline.
4. London, Ontario tort action → R. 24.1 does NOT apply (only Toronto/Ottawa/Windsor); voluntary mediation by agreement only.
5. Commercial List action → mandatory ADR under the Commercial List practice direction, NOT R. 24.1.

⚠ EXAM TIP - ONLY THREE LOCATIONS - TORONTO, OTTAWA, WINDSOR

R. 24.1 applies only in Toronto, Ottawa, and Windsor. Many candidates assume mandatory mediation applies province-wide; it does not. State the geographic limit explicitly. For Q2-style ADR questions, also identify voluntary mediation, arbitration (T35), settlement negotiation, and R. 49 offers as available consensual options.

Template 35 - Arbitration & Commercial Mediation - Statutory ADR Framework

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question asks about consensual ADR options outside the Rules - arbitration under the Arbitration Act, 1991, and commercial mediation under the Commercial Mediation Act, 2010. Sample exam Q2 explicitly requires identification of 'consensually-based dispute resolution

processes available – both as part of the formal rules and separate from the rules.'

ISSUE

The issue is the consensual ADR options available outside the Rules of Civil Procedure - specifically, arbitration under the Arbitration Act, 1991 and commercial mediation under the Commercial Mediation Act, 2010 - and which is most appropriate for [DISPUTE].

RULE

Arbitration Act, 1991, S.O. 1991, c. 17 - application (s. 2). Applies to all arbitrations conducted under an arbitration agreement, except where the parties have expressly excluded the Act, or in international commercial arbitration governed by the International Commercial Arbitration Act, 2017.

Stay of court proceeding (Arbitration Act s. 7). If a party to an arbitration agreement commences a proceeding in respect of a matter to be submitted to arbitration, the court shall, on motion of another party to the agreement, stay the proceeding - limited exceptions (e.g., agreement invalid, matter not arbitrable, motion brought with undue delay).

Conduct (Arbitration Act ss. 19–28). Arbitrator(s) determined by agreement or court appointment. Procedure as agreed by the parties or determined by the arbitrator. Final award binding and enforceable like a judgment (s. 50).

Limited judicial review (Arbitration Act ss. 45–46). Appeal to the court only on questions of law, with leave; setting aside on narrow grounds (corruption, procedural unfairness, no jurisdiction, etc.).

Commercial Mediation Act, 2010, S.O. 2010, c. 16, Sch. 3. Implements UNCITRAL Model Law on International Commercial Conciliation. Applies to commercial mediations agreed to in writing. Provides confidentiality of mediation communications and an enforcement mechanism for mediated settlement agreements.

Confidentiality (Commercial Mediation Act s. 9). Information obtained in the course of mediation may not be used in subsequent legal proceedings, with limited exceptions (consent, criminal proceedings, etc.).

Enforcement of mediated settlement (Commercial Mediation Act s. 12). A mediated settlement agreement, made in accordance with the Act, may be enforced as a contract or by registration with the Superior Court of Justice for enforcement as a judgment.

Other ADR options outside the Rules. Negotiation (always available; no statutory framework needed); facilitative early neutral evaluation; private settlement counsel; collaborative dispute resolution.

Confidentiality of settlement communications. Common-law settlement privilege (Lizotte 2016 SCC 52; Union Carbide 2014 SCC 35) - see T26.

APPLICATION FRAMEWORK

STEP 1: Identify the dispute and the parties' relationship

Commercial parties with arms-length transaction → arbitration or commercial mediation viable. Parties wanting binding resolution outside court → arbitration. Parties wanting facilitated negotiation → mediation. Parties wanting flexible direct negotiation → negotiation.

STEP 2: Arbitration - when appropriate

Arbitration if (a) parties want a binding decision; (b) confidentiality required; (c) specialised arbitrator (industry expertise); (d) faster than court; (e) limited appeal rights desired. Engagement requires arbitration agreement; Arbitration Act s. 7 stay enforces the agreement.

STEP 3: Commercial Mediation - when appropriate

Commercial Mediation Act mediation if (a) ongoing business relationship to preserve; (b) parties

want voluntary, non-binding facilitation; (c) confidentiality required; (d) mediated agreement enforceable under s. 12.

STEP 4: Negotiation and other consensual options

Direct negotiation always available without statutory framework. R. 49 offers create cost incentives within litigation. Settlement at any stage is enforceable as a contract.

STEP 5: Recommendation

Match the option to the dispute. Sample exam Q2 expects a specific recommendation - for a commercial damages dispute between Acme and True North with ongoing business relationship, commercial mediation under the Commercial Mediation Act is typically the first choice; arbitration as a fallback if mediation fails and parties want binding outside-court resolution.

CONCLUSION

The consensually-based ADR options outside the Rules include arbitration under the Arbitration Act, 1991 (binding, private, limited appeal); commercial mediation under the Commercial Mediation Act, 2010 (facilitated, voluntary, confidential, enforceable settlement); and negotiation. Within the Rules, R. 24.1 mandatory mediation (in Toronto/Ottawa/Windsor - T34) and R. 49 offers to settle (T36) provide structured incentives. The choice depends on the parties' relationship, the desired binding effect, and confidentiality needs.

⚠ EXAM TIP - Q2 - STRUCTURE THE ANSWER AS RULES + STATUTES + COMMON LAW

Sample exam Q2 explicitly asks for ADR options 'both as part of the formal rules and separate from the rules.' The model answer is: (a) within the Rules - R. 24.1 mandatory mediation, R. 49 offers; (b) statutory - Arbitration Act, 1991; Commercial Mediation Act, 2010; (c) common law - settlement negotiation; settlement privilege (Lizotte); private mediation by agreement. Each receives 2-3 sentences. Conclude with a specific recommendation tied to the facts.

PART J

SETTLEMENT, COSTS & TRIALS

Three templates covering R. 49 offers to settle (T36), the costs framework (T37), and trial procedure overview (T38). Q5(d) tests costs at trials vs motions; the answer is that costs follow the event in both.

Template 36 - Offers to Settle - R. 49 (Cost Consequences)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the fact pattern includes a written offer to settle, or asks how to incentivise settlement. R. 49 imposes specific cost consequences when an offer is made and the offeree fails to obtain a more favourable result at trial.

ISSUE

The issue is whether [PARTY]'s offer to settle qualifies under R. 49 and triggers the cost consequences in R. 49.10.

RULE

Offer (R. 49.02). A party may serve an offer to settle on any other party at any time. The offer is in Form 49A.

Withdrawal (R. 49.04). An offer may be withdrawn before acceptance by serving a notice of withdrawal.

Acceptance (R. 49.07). An offer may be accepted at any time before it is withdrawn or before the court disposes of the claim. Acceptance is in writing in Form 49C.

Cost consequences when plaintiff's offer rejected (R. 49.10(1)). Where an offer to settle (a) was made by a plaintiff at least seven days before commencement of the hearing; (b) was not withdrawn or accepted before the hearing; AND (c) the plaintiff obtains a judgment as favourable as or more favourable than the offer, the plaintiff is entitled to partial indemnity costs to the date the offer was served and substantial indemnity costs from that date, unless the court orders otherwise.

Cost consequences when defendant's offer rejected (R. 49.10(2)). Where an offer to settle (a) was made by a defendant at least seven days before commencement of the hearing; (b) was not withdrawn or accepted before the hearing; AND (c) the plaintiff obtains a judgment as favourable as or less favourable than the offer, the plaintiff is entitled to partial indemnity costs to the date the offer was served, and the defendant is entitled to partial indemnity costs from that date, unless the court orders otherwise.

Disclosure of offer (R. 49.06). No communication respecting an offer to settle shall be made to the court (except where necessary in connection with a motion arising from R. 49) until disposition of the claim.

APPLICATION FRAMEWORK

STEP 1: Confirm the offer meets R. 49 requirements

(a) In writing in Form 49A; (b) served at least seven days before hearing; (c) not withdrawn before hearing; (d) the offeror's terms are clear and specifically respond to the relief sought.

STEP 2: Determine if the cost consequence is triggered

Compare the offer to the actual judgment. Plaintiff's offer rejected and judgment $\geq$ offer $\rightarrow$ R. 49.10(1) applies (plaintiff gets partial indemnity to date of offer + substantial indemnity from then). Defendant's offer rejected and judgment $\leq$ offer $\rightarrow$ R. 49.10(2) applies (defendant gets partial

indemnity from date of offer).

STEP 3: Apply the discretionary 'unless the court orders otherwise'

The court retains discretion to depart from R. 49.10 cost consequences for compelling reasons (e.g., novelty of issue, unreasonable conduct). Burden is on the party seeking to depart.

STEP 4: Disclosure to court

R. 49.06 - the offer is not disclosed to the trier of fact during trial. After judgment, the offer is disclosed for the cost determination.

CONCLUSION

[OFFER] [meets / does not meet] R. 49 requirements. If the offeree obtains a result no better than the offer, the cost consequences in R. 49.10 are triggered: substantial indemnity scale (for plaintiff offers under (1)) or partial indemnity to defendant from offer date (under (2)), unless the court orders otherwise.

⚠ EXAM TIP - R. 49 IS THE PRIMARY SETTLEMENT INCENTIVE - KNOW THE TWO BRANCHES

R. 49.10(1) (plaintiff's offer rejected - 'beat your own offer' bumps to substantial indemnity) and R. 49.10(2) (defendant's offer rejected - defendant gets partial indemnity from offer date) are the two consequences. The exam will ask one or both. Always identify which party made the offer and apply the correct branch. The seven-day notice requirement is a hard prerequisite.

Template 37 - Costs - Scales, Tariff A & CJA s. 131

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question asks about costs - who pays, how much, on what scale, and what factors apply. Sample exam Q5(d) tests the basic principle that costs follow the event at both trials AND motions.

ISSUE

The issue is the principles by which costs are awarded under CJA s. 131, R. 57, and Tariff A - including the scales (partial, substantial, full indemnity) and the factors the court considers.

RULE

Statutory power (CJA s. 131(1)). Subject to the provisions of an Act or rules of court, the costs of and incidental to a proceeding or a step in a proceeding are in the discretion of the court, and the court may determine by whom and to what extent the costs shall be paid.

Costs follow the event (R. 57.01(1)). In exercising its discretion under s. 131 of the CJA to award costs, the court may consider, in addition to the result in the proceeding and any offer to settle: (a) amount claimed and recovered; (b) apportionment of liability; (c) complexity; (d) importance of the issues; (e) conduct of any party that tended to shorten or lengthen unnecessarily the duration of the proceeding; (f) whether any step in the proceeding was improper, vexatious, or unnecessary; (g) whether any step was taken through negligence, mistake, or excessive caution; (h) hourly rates and time spent.

Three scales. (1) **Partial indemnity** - the default scale; based on a percentage of the actual costs (typically 60%); standard rates set out in the Information for the Profession. (2) **Substantial indemnity** - 1.5 times partial indemnity; awarded for unreasonable conduct, R. 49.10(1) cost consequences, or special circumstances. (3) **Full indemnity** - 100% of actual reasonable costs;

reserved for the most exceptional cases (e.g., misconduct, deliberate breach of court order, fraud).

Tariff A. Sets out the standard hourly rates for various levels of counsel, used as a starting point for partial indemnity quantification.

Bill of costs (R. 57.01(3)). A successful party submits a bill of costs setting out hours, rates, and disbursements; opposing party may dispute on assessment.

Security for costs (R. 56). The court may order a plaintiff to post security for costs where there is good reason to believe costs awards will not be paid (e.g., plaintiff resident outside Ontario, corporation with insufficient assets).

Failure to use simplified procedure - R. 76.13. Plaintiff who recovers within R. 76 limits but used ordinary procedure may be denied costs or have costs reduced.

APPLICATION FRAMEWORK

STEP 1: Identify the successful party

Costs follow the event. Successful party is generally the one who substantially obtained the relief sought.

STEP 2: Determine the scale

Default partial indemnity. Substantial indemnity if (a) R. 49.10(1) cost consequence triggered; (b) unreasonable conduct; (c) reprehensible behaviour; (d) the court so orders. Full indemnity in exceptional cases.

STEP 3: Apply R. 57.01 factors

Result, settlement offer impact (R. 49), complexity, conduct, importance, hourly rates and time spent. Courts often discuss these factors expressly.

STEP 4: Quantify using Tariff A

Apply the rates from the Information for the Profession (partial indemnity rates by year of call). For substantial indemnity, apply the 1.5x multiplier. Disbursements - reasonable and necessary.

STEP 5: Address simplified procedure cost cap

Under R. 76.12.1, costs in simplified procedure are capped at \$50,000 (excl. HST) and disbursements at \$25,000 (excl. HST). R. 76.13 reduces or eliminates costs where ordinary procedure was used in error.

CONCLUSION

Costs are awarded under CJA s. 131 with the discretion structured by R. 57.01. The default is partial indemnity to the successful party; substantial indemnity follows R. 49.10(1) or unreasonable conduct; full indemnity is exceptional. Tariff A and the Information for the Profession provide the rate framework. Simplified procedure caps under R. 76.12.1 apply where R. 76 was used.

⚠ EXAM TIP - Q5(d) - COSTS FOLLOW THE EVENT AT BOTH TRIALS AND MOTIONS

Sample exam Q5(d) is FALSE: 'Losing parties pay costs at trials, but losing parties do not pay costs on motions.' Costs follow the event at both. R. 57.01(1) governs all proceedings; R. 37.18 confirms costs of motions. State the basic principle and the discretionary qualifier under CJA s. 131(1).

Template 38 - Trial Procedure Overview - RR. 46–48

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question raises the conduct of the trial itself - setting down for trial, jury notice, listing, mode of trial, and procedural steps from opening to judgment.

ISSUE

The issue is the procedural framework governing trial - setting down, mode of trial (judge alone vs jury), listing, and the conduct of the trial under RR. 46–48.

RULE

Setting down (R. 48.02). A party may set an action down for trial after the action is ready, by serving and filing a Trial Record (Form 48A) and a Notice of Listing for Trial (Form 48B).

Five-year rule (R. 48.14). Action shall be administratively dismissed if not set down within five years (subject to status hearing - see T32).

Mode of trial (R. 47). Action by jury or judge alone. Jury notice must be filed at the time of pleadings (R. 47.01). Some actions are excluded from jury trial - e.g., simplified procedure (R. 76.02.1), claims for equitable relief.

Striking jury notice (R. 47.02). Court may strike a jury notice on motion where the issues are too complex for a jury, the relief sought is equitable, or other circumstances justify trial by judge alone (Cowles v Balac, 2006 ONCA 34).

Trial scheduling. Local trial scheduling depends on region. Toronto uses a perpetual list system; other regions use sittings.

Conduct of trial (R. 52). Opening statements, plaintiff's case (witnesses, documentary evidence, expert evidence under R. 53.03), defendant's case, reply, closing argument. Judge or jury renders verdict.

Expert evidence (R. 53.03). Expert reports must be served at least 90 days before trial; expert acknowledges duty to court; affidavit of expert under amended rule.

Adjournment (R. 48.04). A party may obtain consent to remove an action from the trial list with leave of the court.

APPLICATION FRAMEWORK

STEP 1: Set down for trial

After discovery and any motions are concluded, [PLAINTIFF] sets the action down by Trial Record (Form 48A) and Notice of Listing (Form 48B) under R. 48.02.

STEP 2: Determine mode of trial

If neither party has filed a jury notice (Form 47A) at pleadings stage, trial is by judge alone. If a jury notice is filed, the action proceeds with jury unless struck under R. 47.02. Simplified procedure (R. 76.02.1) excludes jury trials.

STEP 3: Pre-trial preparation

Pre-trial conference under R. 50 (T33). Service of expert reports under R. 53.03 at least 90 days before trial. Trial briefs (Form 53). Marshalling of evidence and witnesses.

STEP 4: Conduct of trial

Opening statements; plaintiff's case (viva voce + documentary + expert under R. 53.03); defendant's case; reply (limited); closing arguments. Judge or jury renders decision; written reasons or oral judgment.

STEP 5: Post-trial

Costs determination (T37); judgment formalised under R. 59 (orders); any post-trial motions (e.g., to

amend judgment under R. 59.06; appeal - T39).

CONCLUSION

Trial procedure under RR. 46–48 begins with setting down (R. 48.02), proceeds through pre-trial conference (R. 50), expert preparation (R. 53.03), and the trial itself (R. 52). Mode of trial - judge alone or jury - is determined at pleadings (R. 47) subject to motion to strike under R. 47.02. The five-year deadline under R. 48.14 governs delay.

⚠ EXAM TIP - JURY NOTICE TIMING - AT PLEADINGS - IS THE TRAP

Jury notice must be served with or before the close of pleadings (R. 47.01). Late jury notices are typically struck. Jury trial is excluded entirely from simplified procedure under R. 76.02.1. The court has broad discretion to strike a jury notice under R. 47.02 where complexity, equitable relief, or other factors warrant.

PART K

JUDGMENTS, APPEALS & ENFORCEMENT

Two final templates: appeal routes including the final-vs-interlocutory distinction (T39), and enforcement of judgments together with contempt and res judicata (T40). Both round out the procedural lifecycle.

Template 39 - Appeals - Final vs Interlocutory & CJA Routes (ss. 6, 19)

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question raises the right to appeal, the appropriate appellate forum, leave requirements, or the final-vs-interlocutory distinction. The route turns first on whether the order is final or interlocutory.

ISSUE

The issue is whether [ORDER] is final or interlocutory, and which appellate court - the Divisional Court or the Court of Appeal for Ontario - has jurisdiction to hear the appeal under CJA ss. 6 and 19.

RULE

Final vs interlocutory. A final order finally disposes of a substantive right or issue between the parties; an interlocutory order does not. The leading test: *Hendrickson v Kallio*, [1932] O.R. 675 (C.A.) - does the order finally determine the issue?

Court of Appeal jurisdiction (CJA s. 6(1)(b)). Appeals from final orders of the Superior Court of Justice lie to the Court of Appeal for Ontario, except where (i) the amount or value in issue is not more than \$50,000 (Divisional Court - CJA s. 19(1.2)), (ii) jurisdiction is given to another court by the rules, or (iii) leave is required.

Divisional Court jurisdiction (CJA s. 19). (1) An appeal lies to the Divisional Court from (a) a final order of a judge of the Superior Court of Justice for a single payment of not more than \$50,000, exclusive of costs; (b) an interlocutory order of a judge of the Superior Court of Justice, with leave; (c) other orders specified in the rules.

Leave requirements (R. 62). Interlocutory orders require leave to appeal under R. 62.02. Test: (a) conflicting decisions; (b) good reason to doubt the correctness AND the matter is of such importance that leave should be granted.

Time limits (R. 61.04). Notice of Appeal in Form 61A served and filed within 30 days after the making of the order appealed from.

Standard of review. Questions of law - correctness; questions of fact - palpable and overriding error; mixed questions - palpable and overriding (*Housen v Nikolaisen*, 2002 SCC 33).

Court of Appeal final-order route (CJA s. 6(1)(b)). Final orders > \$50,000 → Court of Appeal directly without leave.

APPLICATION FRAMEWORK

STEP 1: Classify the order

Apply *Hendrickson v Kallio*: does the order finally dispose of a substantive right? Examples: judgment after trial = final; refusal of summary judgment leaving the action to proceed = interlocutory; striking a pleading without leave to amend = final; striking with leave to amend = interlocutory.

STEP 2: Determine the monetary threshold

If a final money judgment of \$50,000 or less → Divisional Court (CJA s. 19(1.2)). If more than

\$50,000 or non-monetary final order → Court of Appeal (CJA s. 6(1)(b)).

STEP 3: Determine if leave is required

Final orders generally appealable as of right. Interlocutory orders require leave under R. 62.02 to the Divisional Court. Some specific orders (e.g., R. 76 simplified procedure) have specific leave requirements.

STEP 4: File within 30 days

Notice of Appeal (Form 61A) served and filed within 30 days under R. 61.04. Strict - extensions require court order under R. 3.02.

STEP 5: Standard of review

Apply Housen: correctness for legal questions; palpable and overriding for factual; deferential for discretionary.

CONCLUSION

Classify the order under Hendrickson v Kallio (final or interlocutory). Final orders of \$50,000 or less go to the Divisional Court (CJA s. 19(1.2)); other final orders go to the Court of Appeal for Ontario (CJA s. 6(1)(b)); interlocutory orders go to the Divisional Court with leave under R. 62.02. Notice of Appeal in 30 days under R. 61.04.

⚠ EXAM TIP - FINAL vs INTERLOCUTORY IS THE GATEKEEPER QUESTION

The single most testable appeal issue is whether the order is final or interlocutory. Apply Hendrickson v Kallio: final = finally disposes; interlocutory = does not. Pleading struck without leave = final; with leave = interlocutory. Refusing summary judgment = interlocutory. Granting summary judgment = final. State the test, classify, then identify the route.

Template 40 - Enforcement of Judgments, Contempt & Res Judicata - RR. 60, 60.11; Penner v Niagara

IRAC TEMPLATE

USE THIS TEMPLATE WHEN

Use whenever the question concerns post-judgment enforcement (writs of execution, garnishment, examination in aid of execution), civil contempt for breach of court orders, or the doctrines of res judicata and issue estoppel.

ISSUE

The issue is the enforcement mechanisms available to [JUDGMENT CREDITOR] under R. 60, the procedure for civil contempt under R. 60.11, and the application of res judicata / issue estoppel to bar relitigation.

RULE

Enforcement methods (R. 60). A judgment creditor may enforce a money judgment by (a) writ of seizure and sale (R. 60.07); (b) garnishment (R. 60.08); (c) writ of sequestration (R. 60.09); (d) examination in aid of execution (R. 60.18). Non-money judgments enforced under R. 60.10 (writ of possession, delivery, etc.).

Examination in aid of execution (R. 60.18). Judgment creditor may examine the judgment debtor or any other person under oath as to the debtor's income, assets, and any disposal of assets, to identify enforcement targets.

Garnishment (R. 60.08). Notice of Garnishment requires payment to the Sheriff of money owed by

a third party (garnishee) to the judgment debtor.

Writ of seizure and sale (R. 60.07). Filed with the Sheriff who seizes and sells personal property, then real property, of the judgment debtor.

Civil contempt (R. 60.11). A motion for contempt may be brought against a person who has failed to obey a court order. Contempt must be proven beyond a reasonable doubt; the alleged contemnor is entitled to the procedural protections of a quasi-criminal proceeding (Carey v Laiken, 2015 SCC 17). Three elements: (1) order is clear and unequivocal; (2) party had knowledge of the order; (3) party intentionally did the prohibited act or failed to do the required act.

Penalties for contempt (R. 60.11(5)). The court may impose a fine, imprisonment, or other order to ensure compliance.

Res judicata and issue estoppel - Penner v Niagara (Regional Police Services Board), 2013 SCC 19 (Cromwell and Karakatsanis JJ.). Three preconditions for issue estoppel: (1) same question decided in earlier proceeding; (2) earlier decision final; (3) parties (or privies) the same. Court retains discretion to refuse to apply issue estoppel where unfairness would result.

Cause of action estoppel - Grandview Bay (Re), 2014 ONCA 113. Bars relitigation of claims that were or could have been raised in earlier proceedings between the same parties.

Abuse of process - Toronto (City) v CUPE, Local 79, 2003 SCC 63. Broader doctrine, captures relitigation that brings the administration of justice into disrepute, even where strict res judicata does not apply.

APPLICATION FRAMEWORK

STEP 1: Identify the enforcement question

Money judgment → R. 60.07 writ of seizure and sale, R. 60.08 garnishment, R. 60.18 examination in aid of execution. Non-money order (e.g., injunction, specific performance) → R. 60.10 / R. 60.11.

STEP 2: Locate assets via examination in aid of execution

Under R. 60.18, examine the judgment debtor under oath to identify income, assets, and any improvident transfers. Information gained directs enforcement.

STEP 3: If contempt - apply Carey v Laiken

Civil contempt requires (a) clear and unequivocal order; (b) actual knowledge; (c) intentional disobedience. Standard of proof: beyond a reasonable doubt. Quasi-criminal protections apply.

STEP 4: If relitigation - apply Penner v Niagara

Issue estoppel: same question, final decision, same parties. Court has discretion to refuse to apply where unfairness would result. Abuse of process under CUPE Local 79 captures broader relitigation concerns.

CONCLUSION

Enforcement under R. 60 includes writs (R. 60.07), garnishment (R. 60.08), examination in aid of execution (R. 60.18), and contempt (R. 60.11). Contempt requires Carey v Laiken's three elements proven beyond a reasonable doubt. Res judicata and issue estoppel under Penner v Niagara bar relitigation, subject to the court's residual discretion.

⚠ EXAM TIP - CONTEMPT REQUIRES CRIMINAL-STANDARD PROOF - A KEY DISTINCTION

Civil contempt is treated quasi-criminally. Under Carey v Laiken, 2015 SCC 17, the three elements (clear order, actual knowledge, intentional breach) must be proved beyond a reasonable doubt. This contrasts with the balance of probabilities standard for civil claims. Always state the criminal standard of proof when discussing R. 60.11.

END OF EXAM TEMPLATES

This concludes the 40-template Civil Procedure exam answer framework. The templates cover every topic on the NCA Civil Procedure 2024 syllabus and are aligned with the official sample exam pattern (Q1 commencing proceedings; Q2 consensual ADR; Q3 discovery; Q4 adversarial non-consensual disposition; Q5 ten True/False sub-questions). Used together with the companion NCA Civil Procedure Strategic Notes, they provide a complete examination-preparation system.

Final reminder. Civil Procedure is open-book. Tab these templates by Part before your exam. The single most reliable mark-gaining habit is: rule number + section reference + leading case + application to specific facts. Reference must always be made to the Rules, statutes, and cases - failure to do so will, per the official examiner direction, negatively affect your grade.

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